STATE OF MICHIGAN

IN THE CIRCUIT COURT FOR THE COUNTY OF WASHTENAW

RD MICHIGAN PROPERTY OWNER I LLC, a Delaware limited liability company, FELDKAMP SIBLINGS, LLC, a Michigan limited liability company, DENNIS FINKBEINER, an individual, LYNN ELLEN FINKBEINER, an individual, WILKIN FARM PROPERTIES I, LLC, a Michigan limited liability company, DENNIS C. WILKIN, an individual, and ALICE M. WILKIN, an individual,

Plaintiffs,

v.

SALINE TOWNSHIP, a Michigan municipal corporation,

Defendant.

KATHRYN ELIZABETH HAUSHALTER,

Proposed Intervenor and Cross-Claimant,

v.

SALINE TOWNSHIP, a Michigan municipal corporation,

Cross-Defendant.

Civil Action No. 25-001577-CZ
Judge: Honorable Julia B. Owdziej
Date Filed: 9-12-25

MOTION FOR RECONSIDERATION

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MOTION

Proposed Intervenor Defendant and Cross-Claimant Kathryn Elizabeth Haushalter, by and through her attorneys Ellis Boal and Robert Dube Jr., brings this Motion for Reconsideration of the Court's February 20, 2026, denial of her Motion to Intervene from the bench in the above-caption action pursuant to Michigan Court Rules 2.219, subdivision (F). In support of her motion, Kathryn Elizabeth Haushalter relies on the facts and the law stated in her accompanying brief.

WHEREFORE, for the reasons stated more thoroughly her Brief, Kathryn Elizabeth Haushalter respectfully asks this Court to grant her Motion for Reconsideration.

Respectfully submitted,

ECKLAND & BLANDO LLP

Dated: March 27, 2026

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STATE OF MICHIGAN

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PROPOSED INTERVENING CO-DEFENDANT AND CROSS-CLAIMANT'S BRIEF IN SUPPORT OF MOTION FOR RECONSIDERATION

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NOW COMES Proposed Intervening Co-Defendant and Cross-Claimant Kathryn Elizabeth Haushalter, by and through her attorneys, who submits this Brief in Support of her Motion for Reconsideration.

INTRODUCTION

Haushalter moves the Court to reconsider its order under MCR 2.119(F)(1) as it is founded on three palpable errors: **First**, the Court erred in concluding that Haushalter could not intervene because the case was closed, a rule that, if correct, would nullify intervention motions as a matter of law whenever a judgment is entered, contrary to Michigan precedent that expressly permits post-judgment interventions to protect substantial rights and avoid collateral attacks. **Second**, after determining that Haushalter

had standing to intervene as a defendant, the Court improperly proceeded to weigh the merits of her Open Meetings Act ("OMA") claim rather than stopping the analysis as required under MCR 2.209 once the criteria for intervention were satisfied. **Third**, the Court erroneously found Haushalter's claims time barred despite statutory authority allowing her *at least* 60 days to bring her Motion.

Correcting these errors must result in an alternative disposition of Haushalter's Motion to Intervene. As such, Haushalter respectfully requests this court reconsider its February 20, 2026, bench ruling and March 7, 2026, Order for the same, correct the three palpable errors, and grant her Motion to Intervene as a cross-claimant, defendant, or both.

FACTUAL BACKGROUND

In July 2025, RD Michigan Property Owner I LLC and related parties ("RD") sought to conditionally rezone a 565.063-acre parcel within Saline Township from A-1 to I-1 to build a hyperscale data center, with the data center its non-negotiable condition. [*See* Consent Judgment, filed 10/15/2025, Ex. A; Complaint ¶ 14.] The Township denied the conditional rezoning on September 10, 2025, but not on the ground that conditional rezoning is prohibited by the Township's zoning ordinance. [Proposed Intervening Co-Defendant and Cross-Claimant's Proposed Answer and Cross-Claim ("Proposed Answer") at p. 11 ¶ 43.] RD filed this action two days later. [*See generally* Complaint, filed 09/12/2026.] Saline Township never filed an answer to RD's complaint. [Proposed Answer at p. 25 ¶ 9; *see generally* Dkt.] Instead, on October 1, 2025, the Saline Township Board met regarding the litigation and, during a closed portion of the meeting, decided to "move forward with trying to settle the lawsuit." [*Id.* at p. 24 ¶ 10.]

The Township Board did not vote in an open meeting on the exact terms of a consent judgment, and there was no open meeting at which the Board voted to authorize the Supervisor or Clerk to sign such a judgment. [*Id.* at p. 26 ¶ 14.] Regardless, at some point prior to October 15, 2025, Supervisor James C. Marion and Clerk Kelly Marion signed a Proposed Consent Judgment with RD on behalf of Saline Township. [*Id.* at p. 25-26 ¶ 12.] On October 15, 2025, the parties submitted the signed Proposed Consent Judgment to the Court, which entered it that same day. [*Id.* at p. 26 ¶ 13.] The Township never held a publicly open vote to approve the final terms of the Judgment, and residents—including Haushalter—did not learn of it until October 15, 2025. The minutes from the October 1 meeting were also approved on October 15, 2025. [Proposed Answer, Ex. B.]

Haushalter has resided at 7760 Willow Road, Clinton, MI, since at least 2013; her property lies approximately 256 yards from the RD parcel. [*Id.* at p. 24 ¶ 2.] She leases her property for agricultural use and opposes the rezoning. [*Id.*] As part of her opposition to the rezoning, she filed her Proposed Intervening Co-Defendant and Cross-Claimant's Motion to Intervene in December 2025. [Dkt. filed 12/15/2025.] The Court heard oral argument on her Motion, and the parties' opposition, on February 20, 2026. [*See generally* 02/20/2026 Oral Argument Recording ("Arg. Rec.")[1].] The Court proceeded to

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[1] Counsel for Haushalter was informed by the Court's clerk that submission of this recording via declaration exhibit was unnecessary and therefore refers the Court to the available recording.

deny Haushalter's Motion from the bench. [Arg. Rec. at 11:04:40[2] *et seq.*] On February 24, the parties sent chambers a proposed order denying Haushalter's motion to intervene with prejudice, which all parties, including Haushalter, approved as to form. The Court signed the Order on March 7, 2026. [*See generally* Order filed 03/07/2026.]

LEGAL STANDARD

A motion for reconsideration should be granted when the moving party demonstrates a palpable error by which the court and the parties were misled and shows that correcting the error would result in a different disposition of the motion. MCR 2.119, subd. (F)(3). The motion for reconsideration may not simply present the same issues ruled on by the court. *Id.* The Court has "considerable discretion in granting reconsideration to correct mistakes, to preserve judicial economy, and to minimize costs to the parties." *Sanders v McLaren-Macomb*, 916 NW2d 305, 311 (Mich. App. 2018); *see also Macomb Cnty. Dept. of Hum. Servs. v Anderson*, 849 NW2d 408, 411 (Mich. App. 2014).

ARGUMENT

I. The Court Erred as a Matter of Law by Concluding That Intervention is Not Possible After a Case is Closed.

The Court denied Haushalter's Motion to Intervene in part because the case was "closed." [Arg. Rec. 11:07:48-11:08:06.] This ruling—if correct—would nullify intervention motions as a matter of law whenever a judgment is entered, contrary to

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[2] The timing citations herein refer to the visible clock running in the bottom left-hand corner of the recording, not to the video playback.

Michigan precedent that expressly permits post-judgment intervention to protect substantial rights and avoid improper collateral attacks.

Neither the text of the Michigan Court Rules nor controlling Michigan precedent impose a categorical bar on post-judgment intervention. To the contrary, Michigan courts have repeatedly recognized that final judgment does not preclude intervention, particularly where intervention is sought to challenge the validity of the judgment itself. *Mahesh v Mills*, 602 NW2d 618 (Mich App 1999) (entry of final judgment is not a bar to intervention); *People v 14925 Livernois*, No. 327377, *unpublished decision of the Court of Appeals*, issued on September 15, 2016 (reversing district court's ruling that "final judgment acts as a bar in all circumstances"). There is no basis in the law to create a new bar against intervention into closed cases when Michigan's appellate courts have repeatedly allowed intervention into cases reaching final judgment.

The Court Rules agree with this approach: "[a] defendant over whom personal jurisdiction was necessary and acquired, but who did not in fact have knowledge of the pendency of the action, may enter an appearance within 1 year *after final judgment*." MCR 2.612, subd. (B). In addition to this express allowance for intervention after final judgment, the Rules provide for intervention of right where the applicant

> claims an interest relating to the property or transaction which is the subject of the action and is so situated that the disposition of the action may as a practical matter impair or impede the applicant's ability to protect that interest, unless the applicant's interest is adequately represented by existing parties.

MCR 2.209, subd. (A)(3).

The Court erroneously reasoned that the "plain language" of MCR 2.209, subdivisions (A) and (B) "implies that it [applies to] a current action as opposed to a

closed case." [Arg. Rec. 11:07:54-11:08:06.] But the Rules contain no such limitation; they require only a "timely application." MCR 2.209, subd. (A). The Court's reasoning creates an inconsistency in the intervention doctrine. If, as the Court suggests, Rule 2.209 only applies to "current actions" (i.e. those not entered or closed), then non-parties can never seek relief from a judgment, even if that judgment is void or unlawful. Considering the Court's rule in tandem with the prohibition on collateral attacks, or new suits that challenge a judgment through means other than a direct appeal, paints a bleak picture: intervenors would face a Hobson's choice between an impermissible collateral attack and no remedy at all. *See In re Blakeman*, 926 NW2d 326, 335 (Mich App 2018) (describing defendant's Hobson's choice "between his liberty interests or his children"). This result creates a new rule entirely inconsistent with the protection-of-interests-purpose of MCR 2.209.

II. The Court Exceeded the Scope of Rule 2.209 by Considering the Merits of Haushalter's OMA Claim.

Haushalter sought intervention as a defendant *and* as a cross-claimant. But the Court, after ruling that she had standing as a proposed defendant, denied intervention based only on its determination that the merits of her OMA claim would fail. This was error.

A. The Court failed to consider Haushalter's request to intervene as a defendant separately from her claims as a cross-claimant.

The Court failed to decide (and, after finding standing, to grant) Haushalter's request to intervene as a defendant, regardless of any ruling on her proposed cross-claim.

Nothing in the language of Rule 2.209 conditions intervention on the applicant's ability to plead an immediately viable cross-claim or on proving the ultimate merits of the

challenge. Rather, an intervenor "is not required to prove a meritorious claim at the intervention stage," but need only "claim an interest relating to the property." *Id.*; *see also JA Bloch & Co. v Ann Arbor Twp*, No. 359265, *unpublished decision of the Court of Appeals*, issued on December 22, 2022 (affirming district court order that stated "there will be a time and place for those arguments to be heard, but it's not on the motion to intervene."); [Arg. Rec. 10:04:37-48.]

At the close of the February 20, 2026 hearing, the Court expressly rejected the parties' contention that Haushalter lacked standing because her parcel did not abut the project site, stating, "I don't find that that's grounds for not finding that she would have standing." [Arg. Rec. 11:13:14-11:13:49.] Having found that Haushalter has standing as a neighboring landowner, the Court was obligated to evaluate Haushalter's request to intervene as a defendant separately from her request to file a cross-claim. The record shows the Court did not do so. Instead, it denied intervention wholesale based on (i) timeliness/prejudice tied to post-judgment reliance, and (ii) the perceived futility and timing of her Open Meetings Act claim, both of which are considerations directed only at her cross-claim, not at her more narrow request to participate as a defendant with standing based on her status as a neighboring property owner.

Nor do the parties challenge Haushalter's assertion that she resides 256 yards from the project site, that she leases her land for agricultural purposes, or that she opposes the conversion of more than 550 acres into a hyperscale data center due to its impacts on water, light, and noise. *See* MCR 2.209, subd. (A)(3). Likewise, Haushalter's interests have *not* been adequately represented by the Township in this matter. The Township never answered the Complaint, it negotiated and approved the Consent Judgment

allowing the project to move forward, and it has argued against her participation in this matter. Its support for the data center indicates that it has taken the exact *opposite* position as Haushalter, and the Court's reliance on project concessions (such as monitoring wells and conservation easements) to suggest that Haushalter somehow benefitted from the Consent Judgment does not cure their inherently conflicting positions. Instead, it shows that the Township negotiated a different outcome that Haushalter still opposes.

In short, the Court's focus on OMA timeliness and futility are merits defenses to Haushalter's cross-claim, not bars to her right to appear in this matter as a defendant. The Court should have allowed her to intervene as a defendant even if it chose not to permit her cross-claim and erred by not considering this position in its Order.

B. In addition to being entitled to intervene as a defendant, and as an alternative and independent basis for reconsideration, Haushalter met the minimum criteria for intervention as a cross-claimant.

The Michigan Court of Appeals in *Hill* reversed a lower court that made the same error as the Court here: considering the motion to intervene "in terms of whether [the proposed intervenor] would prevail on its claim" was reversed. 746 NW2d at 123. The *Hill* court expressly noted that "the court rule makes no reference to whether the party seeking intervention has a *meritorious* claim, only that it has a claim." 746 NW2d at 123 (emphasis added). And although the Court of Appeals went on to consider the merits of the issue for purposes of determining whether the lower court's error was prejudicial, it made explicitly clear that to consider the merits of a claim at the intervention stage in the litigation was an error. *Id.; see also Chvala v Blackmer*, No. 221317, *unpublished decision of the Court of Appeals*, issued on January 16, 2001 ("This court rule provides

that the person seeking to intervene need only file a motion, give notice to all parties, state the grounds for intervention, and provide a pleading stating the claim or defense for which intervention is sought. There is no requirement that an evidentiary hearing be held or that documentary evidence be filed to support the motion to intervene.”).

Under *Hill* and *Chvala*, it was palpable error for the Court to deny intervention because it determined Haushalter’s OMA cross-claim would be unsuccessful. [Arg. Rec. 11:10:36-11:11:08 (stating the Court was “allowed to consider whether a future argument would be futile.”).] The Court’s bench order emphasized that it was required to assess what “actually happened” on October 1, 2025, and not be bound by what the Clerk recorded in “inaccurate minutes,” without noting that Township counsel stated *at the meeting* that the potential Consent Judgment was not yet final. [*Id.*] Thus, by resolving a factual evidentiary dispute and forecasting a prediction on the outcome of a not-yet-filed motion to dismiss, the Court collapsed the Rule 2.209 inquiry into an impermissible determination on the merits.

The proper analysis under Rule 2.209 asks only whether the application is timely, whether the proposed intervenor claims a cognizable interest that may be impaired by the disposition, and whether that interest is inadequately represented—not whether the intervenor will ultimately prevail on the merits. The Court took the inquiry too far and palpably erred as a result.

C. The Court reached the wrong conclusion on the merits of Haushalter’s OMA claim.

Despite the Court’s finding of futility, Haushalter *did* state a viable OMA violation claim. What the Court has before it are two renditions as to what happened during that

town board meeting (the Board's notes of the closed vote and the recording of the open session), and both are seemingly correct. One represented what happened during the closed session, and the other represented what happened during the open session which followed. In other words, they correctly memorialize what happened at different times during the same meeting. Neither appears to be "inaccurate."

The two votes, the first taken in a closed session and the second in an open one, are reminiscent of the two votes in *Booth Newspapers v University of Michigan Board of Regents*, 507 NW2d 422 (Mich 1993) and *Cynar v Village of Dexter Council*, No. 198088, *unpublished decision of the Court of Appeals*, issued November 21, 1997. (As *Cynar* had it:

> defendants' actions in closed session here were not mere deliberations. Although defendants returned to open session to vote, they were by that point merely announcing publicly the decision at which they arrived during closed session. Any alleged distinction between consensus building and a determination or action, as advanced in the OMA's definition of "decision," is a distinction without a difference.

1997 WL 33330968 at *3 (applying *Booth*). The minutes here reflect that the Board voted 4-1 in a closed session to "move forward with trying to settle the lawsuit." [*See* Ex. A to Proposed Intervening Co-Defendant and Cross-Claimant's Reply Brief to Defendant Saline Township in Support of Motion to Intervene ("Haushalter's Reply to Saline"), filed 09/12/2025 (emphasis added).] The Township and RD argue the closed-session minutes were error. To the contrary, the Board itself approved those minutes two weeks later, on October 15, 2025. [Proposed Answer, Ex. B, item 5(a).] According to the October 15, 2025 minutes, 19 citizens witnessed the approval. [*Id.*, item 2.] No affidavit

has been presented by any Board member or any of the 19 witnesses averring that the Board's approval of the October 1, 2025, minutes was incorrect.

Importantly, the vote in the open session on October 1, 2025, was to "approve the consent judgment with the terms outlined by our attorneys." [Haushalter's Reply to Saline, Ex. F, p. 27:21-22.] Controverting the above, according to RD counsel at the February 20, 2026, oral argument, Township counsel stated on October 1, 2025, after coming out of the closed session that "the Board hasn't voted. . . They have not voted on it. There's been no vote." Thus, the only controverting evidence submitted was inadmissible hearsay testimony of counsel. *See* MPRC 3.7; [Arg. Rec. 10:21:55-10:22:05; *referring to* Haushalter's Reply to Saline, Ex. F at 3:6-9.]

As noted, the vote in the open session was based on terms "outlined by our attorneys," a point which the bench Order emphasized. [Arg. Rec. 11:11:40-11:12:25.] The Order also referred specifically to the list of the Township's proposed terms included in Plaintiff's Response in Opposition to Motion to Intervene. [Dkt. filed 01/28/2026.] Preceding the list of terms, that brief described these events:

> After the Board came out of the closed session, the Township's attorney, Mr. Landry, presented to the public in detail <u>all</u> of the material terms of a proposed consent judgment to be voted upon by the Township Board later that evening.

[*Id.* at 4 (emphasis added).] At footnote 5, the RD brief acknowledged (in agreement with Haushalter) that no contract was established on October 1, 2025, because RD had not accepted the Township's terms. [*Id.* at 9, n.5.] The brief added that, later, RD did accept the Township's terms:

> But *Plaintiffs had not yet agreed* to the terms of the Consent approved by the Board. As emphasized to the press right after the

> meeting by the Township attorneys, "the developer must agree to the terms." It was a take it or leave it proposition to the Plaintiffs *and Plaintiffs took it*.

[*Id.* (emphasis added).] The Court found that the Township's settlement offer included "considerable concessions" from RD. [Arg. Rec. 11:09:00-17.] The concessions are contained in the transcript of the October 1, 2025 meeting, where the attorney begins by saying "I'm going to let you know what this proposed consent judgment contains." [Haushalter's Reply to Saline, Ex. F at 3:11-9:22.] Among the terms that RD proposed was one described by Counsel as: "They've offered -- which you can do, it's called a conditional rezoning." [*Id.* at 6:8-10.] But Saline Township does not allow conditional rezoning, and denying Haushalter's Motion to Intervene at this stage precludes her opportunity to challenge the erroneous basis it proceeded on *and* constitutes palpable error. *See* Saline Zoning Ordinance § 12.04(A) ("Conditional Rezoning Prohibited.").

The Record does not show when or how RD accepted the Township's terms, but an October 14, 2025, invoice from Township counsel shows that the day after the Board's votes in the special meeting, October 2, 2025, he had a 48-minute conference with RD counsel "to review the edits made to the consent judgment by the Township Board." [*See* Decl. of R. Dube ¶ 5, Ex. 1 (FOIA Request).] Crucially, there were three terms added to the Consent Judgment after October 1, 2025, without the Board or the public being informed in an Open Meeting:

> ¶ 1(r): The parties agree that, *notwithstanding the current zoning or any future zoning of the Property*, the Property may be used or developed as provided in this Consent Judgment.
> . . .
>
> ¶ 17: Cooperation. The parties. . .shall cooperate in good faith. . .in order to carry out the development contemplated in this Consent Judgment,

> including, but not limited to. . .*assisting in Plaintiffs' efforts to obtain any necessary approvals from other governmental or regulatory entities*, such as permits, licenses, or other approvals, as necessary or convenient for the development and use of the Property and/or the Project, in accordance with the terms and conditions of this Consent Judgment.
> . . .
>
> ¶ 18: Conflicting provisions. . . . To the extent that any specific terms or provisions in this Consent Judgment and/or any exhibits hereto. . .are inconsistent with any of the provisions or requirements of the Zoning Ordinance. . .or other codes, ordinances, regulations, or procedures of the Township in effect at the time of further application or development ("Township Codes"), the *terms of this Consent Judgment and Site Plan shall control*.

[Consent Judgment, filed 10/15/2025 (emphasis added).] In sum, the terms provided that the Property would be rezoned and that Saline's zoning regulations would be simultaneously both ignored *and* changed from A-1 to I-1, providing both a land use variance and a conditional rezoning (both of which are prohibited by the Township ordinance). [*Id.*] These are concessions the Township Board made without it being "outlined" by counsel when he went over "all" the terms. Regardless of when it occurred, the decision to add terms outside of an Open Meeting violated MCL 15.263(2).

By creating two different ways for the data center use to be permitted despite zoning prohibitions, the Township's agreement to the Consent Judgment accomplished a legislative act outside of a meeting—an act prohibited by the OMA. *Inverness Mobile Home Cmty., Ltd. v Bedford Twp.*, 687 NW2d 869, 874 (Mich App 2004) ("The power to zone and rezone property is a legislative function." (quotation omitted)).[3] This is illegal. *Id.* ("[A] township board *may not contract away its legislative powers*.") (emphasis

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[3] At the February 20, 2026 hearing, the Court acknowledged it had not noticed Haushalter's references to *Inverness*; this case bears reading for this Motion.

added). These acts in violation of the OMA provide Haushalter with a valid basis to intervene as a cross-claimant in addition to her valid claims as a defendant.

III. Haushalter's Motion to Intervene was Timely.

Michigan courts "liberally construe" the doctrine of intervention. *Hill*, 746 NW2d at 123. Here, the record shows that Haushalter's actions were timely under each relevant measurement: (A) post-judgment intervention timing; (B) the "reasonable time" standard for voidness under MCR 2.612, subdivision (C)(1)(d), as applied in *Inverness*; and (C) the Open Meetings Act's 60-day limitations period for legislative decisions.

A. Haushalter brought her Motion within two months after entry of judgment.

The Court found that the Township approved the Consent Judgment on October 1, 2025, and entered the Judgment on October 15, 2025. [Arg. Rec. 11:04:40 *et seq.*] Haushalter filed to intervene two months later, on December 15, 2025. [Proposed Answer, filed 12/15/2025.] This sequence of events meets *any* reasonable measure of promptness for post-judgment intervention, particularly where, as here, intervention is necessary to seek relief under MCR 2.612 to participate as a defendant.

As noted, the right to intervene must be liberally construed. *Hill*, 746 NW2d at 123 (quoting *Neal v Neal*, 557 NW2d 133, 135 (Mich. App. 1996)). ("'The rule for intervention should be liberally construed to allow intervention where the applicant's interests may be inadequately represented.'"). Under MCR 2.612 subd. (B), persons moving to intervene as "[a] defendant over whom personal jurisdiction was necessary and acquired, but who did not in fact have knowledge of the pendency of the action," have a right to "enter an appearance within 1 year after final judgment." *Id.*

Despite the clear language of MCR 2.612, subd. (B) giving similar motions a full year to intervene, the Court concluded that Haushalter's motion was untimely because it was filed 60 days after entry of the Consent Judgment. [Arg. Rec. 11:04:40 *et seq.*] That conclusion was palpable error for two reasons: First, it effectively nullified the one-year period expressly granted by MCR 2.612, subd. (B) without justification. Second, Michigan appellate courts recognize that post-judgment intervention may be appropriate and timely where the intervenor acts promptly after learning of the judgment and where intervention is necessary to protect a substantial interest. *See*, *e.g.*, *Inverness*, 687 NW2d at 873-75. Here, Haushalter moved 60 days after entry of judgment and shortly after learning of the Consent Judgment that affected her rights. There is no finding, and no record support, that her motion caused prejudice to the existing parties or disrupted ongoing proceedings. To the contrary, the case had already concluded, and intervention was sought solely to permit Haushalter to be heard—intervention itself would not impact the Consent Judgment.

Despite this general statutory one-year time period to move to set aside a judgment as an intervenor, the Court determined that 60 days was too long a time to justify granting Haushalter's Motion. *Id.* [11:04:40 *et seq.*] But Haushalter made her Motion to the Court just *eight weeks* after the entry of final judgment, and she had at least one year to do so. Thus, the Court erred by foreclosing Haushalter's arguments on timeliness grounds.

B. Haushalter brought her Motion within the "reasonable time" standard for voidness under MCR 2.612, subdivision (C)(1)(d).

Independent from the one-year time period described above, Haushalter had even *more* time to bring her Motion because the underlying Consent Judgment is void, as it

impermissibly limits legislative duties reserved to the People. *See* Part I, *supra*; MCR 2.612, subd. (C)(1)(d). A motion that seeks to set aside a consent judgment as void is not subject to the one-year limitation described above but instead need only be brought "within a reasonable time." *Inverness*, 687 NW2d 874. In determining whether the motion was timely, the *Inverness* court focused not only on the passage of time between the entry of judgment and the motion to intervene, but on whether the consent judgment itself was a valid delegation of legislative power by a township board. *Id.* at 248-49. The Court upheld the intervention despite the township's motion being filed more than a year after entry of judgment, emphasizing that void judgments may be challenged at any point after the invalidity is known, as long as the timing is "reasonable." *Id.*

That binding authority should have guided this Court's reasoning. Unlike *Inverness*, where more than a year had elapsed, Haushalter moved to intervene and seek relief just eight weeks after entry of the Consent Judgment. Both the judgment at issue in *Inverness* and the Consent Judgment here permit development inconsistent with the Township's zoning ordinance and bypasses the public notice, hearing, and legislative processes mandated by statute, which the court of appeals reversed. And, as a nearby property owner whose interests are not represented when the Township agreed to the Consent Judgment, Haushalter meets the minimal qualifications to intervene.

Measured against the standards articulated in *Inverness*, Haushalter's motion was not only timely, but prompt. If intervention and relief were permissible in *Inverness* more than a year after judgment, the conclusion that an eight-week delay is unreasonable cannot be reconciled with Michigan precedent. By rejecting Haushalter's motion on timeliness grounds, the Court effectively imposed a judicial deadline far shorter than the

"reasonable time" standard governing void judgments and ignored controlling authority permitting post-judgment intervention by affected landowners.

Accordingly, the Court erred as a matter of law in concluding that Haushalter's motion was untimely and in foreclosing her challenge to a the arguably void Consent Judgment.

C. It is unclear what date the parties agreed to the terms of the Consent Judgment, and the clearest measuring date is 60 days from the approval of the minutes.

This Court applied a 30-day time-bar to Haushalter's OMA claim. By relying on the false premise that the Township Board had voted to approve a *contract* on October 1, Haushalter's claim was erroneously time barred. [Arg. Rec. 11:11:20 *et seq.*] But not even RD agrees that a contract was agreed to then. Rather, the October 1, 2025, meeting concluded with Township counsel announcing that the Board had "put a lot of stuff in that Judgment" that had not been there previously, that "this may not be done because we added a bunch of stuff," that "there's a lot of stuff in that judgment that [RD] have not approved or seen," and that "it's not necessarily a done deal no matter what." [Haushalter's Reply to Saline, Ex. F, p. 28-29.] The transcript makes clear that the parties were not engaged in a binding contract when the October 1, 2025, hearing concluded.

Under the OMA, the default deadline to commence a civil action to challenge the validity of a decision is "60 days after the approved minutes are made available to the public by the public body." MCL 15.270, sec. 10, subd. (3)(a). The exceptions to this rule are enumerated in subsection (3)(b), and include acts such as approving contracts, accepting bids, making assessments, issuing bonds, submitting borrowing proposals. *Id.* at (3)(b). These acts are subject to a 30-day time bar, rather than the typical 60 days. *Id.*

Here, the Court considered the Consent Judgment to be a contract and applied the subdivision (b) 30-day time limit. This was palpable error, however, because the parties had not entered into a contract at the October 1, 2025 meeting, as shown by the closing language quoted above, and because the enumerated subjects in subdivision (b) are clustered around contract procurement and finance administration, not legislative rezoning and land-use determinations. By contrast, subsection (a) is the default 60-day rule for "a decision of a public body" not falling into those listed administrative categories. *Id.* Reading *Inverness*'s substance-over-form approach together with the OMA text, a consent judgment that accomplishes a legislative land-use result belongs under section (a)'s 60-day period, not under section (b)'s 30-day window.

The Court held that a 30-day time limit for contracts applies to Haushalter's motion. But given that no contract was agreed to on October 1, 2025, that agreement was reached only later on an unknown date (and not by the Board as a whole at an open meeting), and that section (a) is the more reasonable deadline for legislative and land use decisions, the OMA time limit of 60 days from approval of the minutes applies to this case. *Id.* at (3)(a), (b). The Court held otherwise, which constitutes a palpable error.

CONCLUSION

Wherefore Haushalter asks the Court to reconsider its decision and grant her Motion to Intervene as a matter of right and to intervene as a defendant and/or to assert her cross-claim.

ECKLAND & BLANDO LLP

Dated: March 27, 2026

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UNPUBLISHED OPINION. CHECK
COURT RULES BEFORE CITING.
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Court of Appeals of Michigan.

PEOPLE of the State of Michigan, Plaintiff–Appellee,

v.

14925 LIVERNOIS, Defendant,

and

Stanley White doing business as

Tropical Hut Lounge, Claimant,

and

Intelligent Investment Group, L.L.C., Appellant.

Docket No. 327377.

Sept. 15, 2016.

2016 WL 4947279
Only the Westlaw citation is currently available.

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Intelligent Investment Group, L.L.C., Appellant.

Docket No. 327377.
|
Sept. 15, 2016.

Wayne Circuit Court; LC No. 07–727338–CF.

Before: CAVANAGH, P.J., and SAAD and FORT HOOD, JJ.

Opinion

PER CURIAM.

***1** Intelligent Investment Group, L.L.C. ("IIG") appeals the trial court's decision to deny its motion to intervene and for relief from an order of abatement. The trial court concluded that IIG's motion to intervene was untimely because it was filed after a final judgment had been issued. The court consequently denied IIG's motion for relief from the order of abatement because IIG was not a party. IIG argues on appeal that the court's decisions were erroneous. We agree and reverse and remand for proceedings consistent with this opinion.

I. BACKGROUND FACTS AND PROCEDURAL POSTURE

In October 2007, plaintiff filed a complaint for abatement of nuisance, pursuant to MCL 600.3801 *et seq.* and MCL 333.7521 *et seq.,* against defendant real property ("the property") and other parties, including claimant Stanley White, who owned the liquor license and operated the business, the Tropical Hut Lounge ("Tropical Hut"), on the property. The complaint alleged that Tropical Hut had "a reputation for violence, disorderly persons, underage drinking, and use of controlled substances," and that it had been cited for serving alcohol to minors on several occasions. In addition, it alleged that between 2006 and 2007, Detroit Police officers responded to two shootings and an armed robbery outside of Tropical Hut. Plaintiff asked the court to abate the nuisance by padlocking the property for a period of one year pursuant to MCL 600 .3801 *et seq.,* and/or to enter a permanent injunction against defendants to cease from operating Tropical Hut, and to order that the furniture, fixtures, and other contents of the building be sold to pay any outstanding taxes, liens, or other outstanding costs against the property, and that the court order the forfeiture of the property and authorize the appointment of a receiver.

Other than White's answer to the complaint, nothing of substance happened in the case until October 2014. At that time, White entered into a consent judgment with plaintiff and stipulated that he was the owner of the property and that no other person or entity had a valid legal claim or interest in the property. White agreed to make several changes to the property and his business operations under the terms of the judgment, including installing lighting in the parking lots and alley; installing security cameras; instructing employees to ensure that customers of Tropical Hut were age 21 or older; and training security staff in "de-escalating" situations in which patrons had to be escorted out of the bar. White also agreed to pay a "redemption fee" of $1,500 to the prosecutor's office by October 24, 2014. When White failed to pay the redemption fee, the circuit court ordered the property to be padlocked for one year, beginning November 21, 2014, and ordered any occupants of the property to vacate during the padlocking. The court further ordered that the property was not to be mortgaged, exchanged, or transferred during the padlocked period.

***2** In January 2015, IIG moved (1) to intervene and (2) for relief from the order of abatement. According to IIG, the Wayne County Treasurer had foreclosed on the property on April 20, 2011, for the failure to pay property taxes, and in October 2011, IIG purchased the property from the treasurer. Thus, IIG claimed that it was the sole owner of the property and that it learned of the order of abatement only after it discovered that the property had been padlocked. The court denied IIG's motion to intervene as untimely because a final judgment had already been entered in the case. It also denied

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IIG's motion for relief from the order of abatement because it was not a real party in interest.

IIG filed with this Court an application for leave to appeal the trial court's decision, which we granted. See *People v. 14925 Livernois,* unpublished order of the Court of Appeals, entered July 27, 2015 (Docket No. 327377).

II. MOTION TO INTERVENE

IIG argues that the trial erred when it denied IIG's motion to intervene. We agree. This Court reviews a trial court's decision on a motion to intervene for an abuse of discretion. *Auto–Owners Ins. Co. v. Keizer–Morris, Inc.,* 284 Mich.App 610, 612; 773 NW2d 267 (2009). "An abuse of discretion occurs when the decision results in an outcome falling outside the principled range of outcomes." *Id.* (quotation marks and citation omitted).

Pursuant to MCR 2.209(A)(3), a person who submits a timely application has a right to intervene

> when the applicant claims an interest relating to the property or transaction which is the subject of the action and is so situated that the disposition of the action may as a practical matter impair or impede the applicant's ability to protect that interest, unless the applicant's interest is adequately represented by existing parties.

The trial court denied IIG's motion to intervene solely because it determined that the motion was untimely, as a final judgment had already been entered. The court relied on *Dean v. Dep't. of Corrections,* 208 Mich.App 144, 150–151; 527 NW2d 529 (1994), aff'd 453 Mich. 448 (1996), and *W A Foote Mem. Hosp. v. Mich. Dep't. of Pub. Health,* 210 Mich.App 516, 525; 534 NW2d 206 (1995), for this proposition. We, however, disagree that a final judgment acts as a bar in all circumstances and that these cases are controlling.

In *Dean,* a panel of this Court held that the intervening plaintiffs' postjudgment motion to intervene was untimely, and stated that "[t]here should be considerable reluctance on the part of the courts to allow intervention after an action has gone to judgment and a strong showing must be made by the applicant." *Dean,* 208 Mich.App at 150. We further stated:

> [The] intervening plaintiffs made a less-than-strong showing that intervention was appropriate. They merely claimed that their action and the main action had a question of law in common and that intervention would not unduly delay or prejudice the adjudication of the original parties' rights. *Nowhere in their motion do intervening plaintiffs explain why they failed to move for intervention while the main action was pending.* [*Id.* at 150–151 (emphasis added).]

***3** We concluded that "[a]llowing intervening plaintiffs to intervene after a judgment is entered promotes a bad public policy: intervening plaintiffs reap the benefits of a favorable judgment but would not be bound by an adverse judgment." *Id.* at 151.

However, *Dean* is distinguishable from the present case in three primary aspects. First, unlike the applicants in *Dean,* IIG did explain why they moved to intervene when they did. IIG claims it only became aware of any proceedings when it found the property padlocked pursuant to the trial court's order of abatement. Nothing in the record gives any indication that IIG could have or should have known about the proceedings earlier.

Second, the Court's concerns in *Dean*—that allowing parties to intervene after judgment has been entered promotes gamesmanship because a party could wait to intervene only after a favorable judgment has been entered, and thereby not be bound by any unfavorable judgment—are not present in the instant case. Here, no such favorable judgment had been entered from which IIG sought to benefit. Although White was permitted to continue operating the Tropical Hut under the terms of the consent judgment, the judgment was not entirely in his favor, as White was required to expend monies to purchase lights and security cameras, and for additional employee training, in addition to the $1,500 redemption fee. Assuming that IIG would have been subject to the same terms under the judgment as White, there is no indication that

IIG moved to intervene in order to benefit from a favorable judgment. And with respect to the later order for abatement, there is no question that this order was not advantageous to IIG. Under this order, the property was to be padlocked for a year, thereby preventing IIG, the clear owner of record, from utilizing the property in any fashion.

Third, the proposed intervenors in *Dean* sought *permissive intervention* through MCR 2.209(B), and here, IIG sought *intervention of right* through MCR 2.209(A). Under the rules for permissive intervention, "the court shall consider whether the intervention will unduly delay or prejudice the adjudication of the rights of the original parties." MCR 2.209(B). Notably, under MCR 2.209(A) for intervention of right, there is no corresponding consideration. Thus, unlike with intervention of right, when a request for permissive intervention occurs, a court must evaluate any potential prejudice to the original parties, which necessarily includes consideration of whether a judgment may have already been entered in the action.

Similarly, in *W A Foote,* we concluded that the trial court abused its discretion when it allowed the intervening plaintiff to intervene. *W A Foote,* 210 Mich.App at 525. The intervening plaintiff argued "that the parties' claims arose out of the same transactions and occurrences, and that the identical question of law was at issue in both cases," which presumably entitled it to permissive intervention. *Id.* at 522; see MCR 2.209(B)(2). We cited our holding in *Dean* "that a trial court abuses its discretion in granting a motion to intervene after a judgment favorable to the intervenor has already been entered for the original party to the suit with whom the intervenor is attempting to align." *W A Foote,* 210 Mich.App at 525. Further, we stated that "[f]ollowing the rationale of *Dean,* it would be equally unfair to permit [the intervening plaintiff] to intervene in the case *when it knew that Foote had just received a favorable ruling from the trial court." Id.* (emphasis added).

***4** Here again, the facts in the instant case are not similar, as IIG did not wait to intervene until after entry of a favorable judgment. Rather, there is nothing in the record to show that it was aware of the litigation at any time before its building was padlocked pursuant to the order of abatement, a decision which certainly was not favorable to IIG.

Therefore, we hold that the trial court erred when it ruled that IIG's motion to intervene was untimely based on *Dean* and *W A Foote* because our holdings were not that, regardless of the circumstances, a motion to intervene as of right may *never* be granted after entry of a final judgment. In fact, in other decisions, we have held that entry of a final judgment is not a bar to a motion to intervene. See, e.g., *Vestevich v. West Bloomfield Twp.,* 245 Mich.App 759, 762–763; 630 NW2d 646 (2001); *Mahesh v. Mills,* 237 Mich.App 359, 364–365; 602 NW2d 618 (1999). Additionally, IIG correctly points out that MCR 2.209(A) does not contain any express language that an application to intervene must be made prior to entry of a final judgment.

In *Vestevich,* the plaintiff owned a piece of property zoned as residential, which he sought to develop commercially, and challenged the defendant's enforcement of a zoning ordinance as unconstitutional. *Vestevich,* 245 Mich.App at 760–761. The trial court upheld the ordinance, and we affirmed. *Id.* at 761. The plaintiff filed, but did not notice, a motion for reconsideration, and the parties entered into a consent judgment that allowed the plaintiff to develop the property commercially in exchange for "certain concessions." *Id.* However, adjacent and other nearby property owners objected to the plaintiff's development and filed motions to intervene, which were granted by the trial court. *Id.* We affirmed the decision of the trial court granting permissive intervention under MCR 2.209(B), stating that "the concern of inadequate representation of interests need only exist; inadequacy of representation need not be definitely established. Where this concern exists, the rules of intervention should be construed liberally in favor of intervention." *Id.* at 762–763. Further, we stated that although the consent judgment included terms that were "obviously intended to address the concerns of nearby landowners, this does not mean that defendant could not have failed to address all concerns of all affected landowners" and the "defendant's representation of the intervenors' interests might well have been inadequate"; thus, intervention was appropriate. *Id.* at 762–763.

Likewise, in the instant case, neither of the existing parties adequately represented IIG's interests in the litigation. White was no longer the owner of the property at the time of the entry of the consent judgment or order of abatement and, thus, was not similarly situated to IIG and could not have adequately represented its interests in the litigation. IIG's ownership interest in the property was not represented by the existing parties pursuant to MCR 2.209(A)(3). As a result, the trial court erred when it denied IIG's motion to intervene as of right.

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***5** Incidentally, we note that plaintiff did not dispute that IIG was the owner of the property. Instead, plaintiff argued that IIG was nevertheless bound by the consent judgment because White was "associated" with IIG, and IIG had acted inequitably in order to avoid liability under the judgment. However, plaintiff offered no evidence to support these allegations. Because there was no evidence that IIG had acted in concert with White to avoid the consent judgment, or that IIG was aware of the foreclosure action, we hold that the trial court abused its discretion when it denied IIG's motion to intervene.

III. MOTION FOR RELIEF FROM JUDGMENT

IIG argues that the trial court improperly denied its motion for relief from the order of abatement under MCR 2.612(C). We review a court's decision on a motion for relief from judgment or order for an abuse of discretion. *Detroit Free Press v. Dep't. of State Police,* 233 Mich.App 554, 556; 593 NW2d 200 (1999).

MCR 2.612(C)(1) governs how a party may obtain relief from judgment or order and states as follows:

> On motion and on just terms, the court may relieve *a party or the legal representative of a party* from a final judgment, order, or proceeding on the following grounds:
>
> (a) Mistake, inadvertence, surprise, or excusable neglect.
> * * *
>
> (c) Fraud (intrinsic or extrinsic), misrepresentation, or other misconduct of an adverse party.
>
> (d) The judgment is void.
> * * *
>
> (f) Any other reason justifying relief from the operation of the judgment.
>
> [Emphasis added.]

Here, the trial court did not analyze the merits of IIG's claims that it was entitled to relief due to mistake under subsection (a) or any other reason under subsection (f). Instead, because the court denied IIG's request to intervene, it found that IIG's motion for relief from judgment was improper because IIG was not "a party or the legal representative of a party," as the court rule requires. But because we have ruled that IIG should have been allowed to intervene, the court necessarily erred when it relied on IIG's status as a nonparty. Normally, we would allow the trial court on remand to consider the underlying merits of IIG's motion first, but the facts as presented are straight-forward and, due to the interests of justice, we will address whether IIG was entitled to relief.

When the underlying consent judgment and order for abatement were entered in October and November 2014, respectively, the trial court was under the impression that White was still the owner of the property, as he had been when the case was initiated seven years earlier in October 2007. However, the evidence clearly establishes that this was erroneous, i.e., a "mistake." IIG provided to the trial court the October 2011 deed, which established that it had been the owner of the property for the three years preceding the entry of both the consent judgment between the prosecutor and White and the subsequent order of abatement. Consequently, the derivative order of abatement was not valid as to IIG because White was not the property's owner and did not have authority to enter into the earlier consent judgment on behalf of IIG or the defendant property. [1]

***6** Because we hold that IIG was entitled to intervene as of right and obtain relief from the abatement order, we need not address IIG's other argument that the consent judgment and order of abatement were void because plaintiff's interest in the property was extinguished by the judgment of foreclosure. See *Ryan v. Ryan,* 260 Mich.App 315, 330; 677 NW2d 899 (2004) ("Generally, this Court need not reach moot issues or declare legal principles that have no practical effect on the case....").

Reversed and remanded for proceedings consistent with this opinion. We do not retain jurisdiction.

All Citations

Not Reported in N.W. Rptr., 2016 WL 4947279

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Footnotes

1 Additionally, assuming that the facts as presented do not constitute a “mistake” under subsection (a), White's representations that he was the owner of the property at the time of the consent judgment would constitute “fraud” or “misrepresentation” under subsection (b).

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UNPUBLISHED OPINION. CHECK
COURT RULES BEFORE CITING.
UNPUBLISHED

Court of Appeals of Michigan.

J.A. BLOCH AND COMPANY and
Sun ACQ, LLC, Plaintiffs-Appellants,

v.

ANN ARBOR TOWNSHIP, Defendant-Appellee,

and

Village of Barton Hills and Barton Hills Maintenance Corporation, Intervenors.

No. 359265

December 22, 2022

2022 WL 17876842
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UNPUBLISHED OPINION. CHECK
COURT RULES BEFORE CITING.

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Court of Appeals of Michigan.

J.A. BLOCH AND COMPANY and
Sun ACQ, LLC, Plaintiffs-Appellants,
v.
ANN ARBOR TOWNSHIP, Defendant-Appellee,
and
Village of Barton Hills and Barton Hills
Maintenance Corporation, Intervenors.

No. 359265
|
December 22, 2022

Washtenaw Circuit Court, LC No. 21-000173-CZ

Before: Shapiro, P.J., and Borrello and Yates, JJ.

Opinion

Per Curiam.

***1** The present case arises from a dispute over a proposed manufactured-home development in Ann Arbor Township and, more specifically, the continued validity of a 1975 court order authorizing a development on the site in question. Plaintiffs appeal as of right an order denying plaintiffs' motion for summary disposition and instead entering judgment in favor of defendant, Ann Arbor Township, under MCR 2.116(I)(2). For the reasons set forth in this opinion, we affirm in part, reverse in part, and remand for further.

I. BASIC FACTS AND PROCEDURAL HISTORY

As previously stated, this dispute relates to a proposed mobile-home or manufactured-home development in Ann Arbor Township. The property at issue consists of three parcels, totaling approximately 139 acres. In the 1970s, plaintiffs' predecessors—Herman Doletsky, Mary Doletsky, Mort Levin, Harry Nayer, Robert Warren, and Penz Development Company (collectively, the Doletsky plaintiffs)—filed suit against the township, seeking an injunction directing the township to allow use of the property as a mobile-home park under the R-5 classification, which governed mobile-home-park districts in the township at that time. At the time, the township had *no* areas in the township zoned as R-5. Following a bench trial, the trial court entered an opinion, a supplemental opinion, and ultimately a judgment in favor of the Doletsky plaintiffs. Specifically, the final judgment of the trial court entered on April 25, 1975. In relevant part, the final judgment stated:

> IT IS ORDERED and adjudged that the present zoning of the [Doletsky] plaintiffs' 139 acres of real estate in Ann Arbor Township [as described with a metes and bounds description and references to deeds recorded with the Register of Deeds for Washtenaw County]
>
> * * *
>
> is invalid because it bears no substantial relationship to the public health, safety and welfare; and that [the Doletsky] Plaintiffs are entitled to a permit for the development of such property as a mobile home park in accordance with the terms and conditions of the R-5 zoning classification contained in Ann Arbor Township's Zoning Ordinance and in compliance with public health regulations.
>
> IT SHALL BE AND HEREBY IS ORDERED that the above described property shall for all purposes be deemed to be zoned in the said R-5 zoning classification.
>
> It is adjudged that Plaintiffs or any of them or their successors, if any, are entitled to develop the above described real property as a mobile home park in accordance with the terms and conditions of the R-5 zoning classification contained in Ann Arbor Township's Zoning Ordinance and in compliance with public health and regulations.
>
> It is further ordered that [the township] shall issue such permits as may be necessary under its ordinances for development of the above-described real property as a mobile home park in accordance with the terms of this judgment.

The township appealed to this Court, and a panel of this Court affirmed the trial court's judgment, reasoning, in part:

> ***2** The township has provided a mobile home zoning district, but has failed to so zone any property in the

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> township. [The township's] argument that there has been no previous request for rezoning to R-5 is inapposite. Mobile home parks have been totally excluded from the township. The ordinance is invalid as applied to the [Doletsky] plaintiff's use of their land. [*Doletsky v Ann Arbor Twp*, unpublished per curiam opinion of the Court of Appeals, issued May 20, 1976 (Docket No. 24056), p. 3.]

The township then sought delayed leave to appeal in the Michigan Supreme Court, which the Supreme Court denied. *Doletsky v Ann Arbor Twp*, 399 Mich 834 (1977).

Following the original lawsuit, the property was transferred in its entirety to J.A. Bloch, which was formerly known as Penz Development. In the late 1980s, J.A. Bloch made some efforts toward development of a mobile-home park, including submitting a site plan to the township and requesting the rezoning of one parcel, totaling 80 acres, to R-6, which was and is the current township zoning ordinance for mobile-home parks. Although the 80-acre parcel was rezoned to R-6, the other two parcels remained zoned as A-1 for general agriculture. The development was ultimately not completed in the 1980s.

In 2008, and again in 2015, the township adopted new Master Plans, which referred to the previous litigation from the 1970s. Both Master Plans stated:

> In Area C, in 1977, Ann Arbor Township accepted a court ordered mobile home park zoning on the north side of Warren Road, east of US-23. The Township will permit the mobile home park to develop as directed by the court's decision. Other areas of the Master Plan have been structured with this planning decision in place.

Nevertheless, in 2020, Sun ACQ, LLC, submitted a preliminary site plan to the township, seeking approvals for a 499-unit, mobile-home park, which would be served by an on-site "community well and private wastewater treatment plan." The township rejected the preliminary site plan for a development—known as Arbor Oaks Manufactured Home Park—on the property in question. In rejecting the site plan, and indeed refusing to consider the site plan, the township noted that one parcel was zoned R-6, but the other two parcels were zoned A-1, and the township asserted that plaintiffs needed to seek rezoning before a site plan would be considered. Notably, for the first time, the township also disavowed the continued validity of the 1975 Judgment, stating that it was now the township's position that "the 1975 Judgment is not valid and is unenforceable." In 2020, the township also amended its zoning ordinances with regard to mobile-home parks and the site-plan approvals required for mobile-home parks.

In February 2021, plaintiffs filed suit against the township, seeking declaratory and injunctive relief. Specifically, their complaint alleged three counts: (1) a request for declaratory relief to the effect that the 1975 Judgment remained valid and that the township should be estopped from claiming the judgment was not enforceable; (2) a due-process claim involving the assertion that the 2020 revisions to the township's ordinance violated the procedures for approval of mobile-home parks as set forth in The Mobile Home Commission Act (MHCA), MCL 125.2301 *et seq.*, and constituted part of a "long-term pattern and practice" by the township in discriminating against mobile-home parks; and (3) a claim that the township's refusal to comply with the 1975 Judgment amounted to contempt of court.

***3** Over plaintiffs' objections, the trial court allowed intervenors—the Village of Barton Hills and the Barton Hills Maintenance Corporation—to intervene in the case. Intervenors maintained that they had a right to intervene because they owned and operated a nearby municipal water supply system, which drew water from an aquifer under plaintiffs' property, and the township would not adequately protect their interests. Alternatively, intervenors asserted that their interest in their water supply provided a basis for permissive intervention, which they asserted would not unduly delay proceedings or prejudice the rights of the original parties. In allowing intervention, the trial court concluded that intervenors had an interest that may not be adequately protected by the township.

Plaintiffs moved the trial court for partial summary disposition under MCR 2.116(C)(9) and (C)(10). In particular, plaintiffs contended that they were entitled to

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summary disposition to the effect (1) that the 1975 Judgment remained in full force and effect and (2) that the 2020 amendments to the township's zoning ordinance were unenforceable because the amendment violated the MHCA. In asserting that the 1975 Judgment remained valid, plaintiffs more specifically argued (1) that the judgment did not expire, (2) that the township waived any claim regarding the validity of the judgment, (3) that laches did not bar plaintiffs from seeking to enforce the judgment because there was no inexcusable delay and no prejudice to the township, (4) that the judgment was not an impermissible exercise of legislative authority by the judiciary, and (5) that collateral estoppel and res judicata precluded the township from attacking the validity of the 1975 Judgment.

In response, the township asserted that plaintiffs' motion for summary disposition should be denied and that the trial court should instead enter judgment in favor of the township under MCR 2.116(I)(2). Most relevant to the issues on appeal, the township asserted that laches applied to bar enforcement of the 1975 Judgment or that a statute of limitations barred plaintiffs' attempt to enforce the judgment. Relating to plaintiffs' challenges to the 2020 zoning amendments, the township also asserted that plaintiffs' claim in Count II related to the MHCA should be dismissed because plaintiffs lacked standing and they were effectively seeking an advisory opinion to which they were not entitled. Intervenors filed a brief supporting the township's position regarding summary disposition.

The trial court denied plaintiffs' motion for summary disposition, and instead granted summary disposition to the township under MCR 2.116(I)(2). Regarding the 1975 Judgment, the trial court concluded that laches barred plaintiffs' attempts to enforce the judgment at this time. The trial court reasoned:

> The Township's laches argument and I'll say further and I don't agree that every declaratory judgment would be subject to laches. If this were a quiet title action where you had an adverse possession issue and we were talking about a judgment in favor of someone on adverse possession of a piece of property, then I would agree that that runs forever or until it's modified in some other way.
>
> This is a particular request to—or the earlier case, the 1970 something case, sought to build a mobile home park on property that wasn't zoned for that. The argument was that—or one of the arguments was that the Township had effectively zoned out mobile home parks and the judge ruled that that was unconstitutional and gave permission to the extent that he could or beyond the extent that he could evidently, to build a mobile home park on these three parcels of property and directed that the property would be zoned or would be considered as zoned R-5 or otherwise as would permit a mobile home park.
>
> ***4** And following that in 1975 the developer did not build the mobile home park. The Township 10 years later in 1985 rezoned one third of the property or one of the three parcels to permit a mobile home park and still nothing else happened until the past couple of years when the Plaintiff and or Plaintiffs' would-be successor in interest sought to build a mobile home park on all three parcels and the Township said no.
>
> There is zoning in the Township that permits mobile home parks. [1] The basis for the earlier decision of the judge—of the earlier judge, 1975, no longer exists and that name I don't even recognize, Vander something, I don't know.
>
> But in any event as I said I think that permission such as this doesn't, last forever. I couldn't say when it expired. I would say it would have been suspect within a couple of years after 1985 when the one parcel was rezoned and the two others were not.
>
> And after that the property owner is at his peril to either seek permission to build it or follow through with the township to ensure that the entire—or that the other two parcels are rezoned to permit a mobile home park. But failing one of those two actions, my ruling is that he's barred—that the property owner is barred by laches from now acting in that 1975 judgment.

In comparison, with regard to plaintiffs' Count II, the trial court also agreed with the township that plaintiffs were essentially requesting an "advisory opinion" and that the claim was not yet ripe for judicial review. Plaintiffs now appeal to this Court as of right.

II. SUMMARY DISPOSITION RELATED TO THE 1975 JUDGMENT

On appeal, plaintiffs first argue that the trial court erred by granting summary disposition to the township on the basis that laches barred enforcement of the 1975 Judgment. According to plaintiffs, summary disposition should have instead been granted to plaintiffs on the basis of res judicata,

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collateral estoppel, or waiver. In response, the township asserts that the trial court correctly applied laches to the facts of this case. As an alternate basis to affirm, the township also argues that a statute of limitations bars plaintiffs' enforcement of the 1975 order, and in the context of its statute-of-limitations argument, the township argues that summary disposition was properly granted because the 1975 Judgment was an injunction, which is always modifiable.

A. STANDARDS OF REVIEW

This Court reviews de novo a trial court's ruling on a motion for summary disposition. *Penrose v McCullough*, 308 Mich App 145, 147; 862 NW2d 674 (2014). "A circuit court properly grants summary disposition to the opposing party under MCR 2.116(I)(2) if the court determines that the opposing party, rather than the moving party, is entitled to judgment as a matter of law." *Connell v Lima Twp*, 336 Mich App 263, 281; 970 NW2d 354 (2021).

Absent a factual dispute, whether a claim is barred by a statutory limitations period presents a question of law, which this Court reviews de novo. *In re Gerald L Pollack Trust*, 309 Mich App 125, 134; 867 NW2d 884 (2015). Likewise, with respect to laches, "this Court reviews a trial court's equitable decisions de novo, but the findings of fact supporting an equitable decision are reviewed for clear error." *Tenneco Inc v Amerisure Mut Ins Co*, 281 Mich App 429, 444; 761 NW2d 846 (2008). In the context of summary disposition, laches can be decided as a matter of law if the facts are undisputed. See *Johnson Family Ltd Partnership v White Pine Wireless, LLC*, 281 Mich App 364, 394-395; 761 NW2d 353 (2008).

B. LACHES

***5** Following review of the record evidence in this matter, we conclude that laches does not apply on the undisputed facts of this case, thus, the trial court erred by granting summary disposition to the township on the basis of laches. This Court has explained:

> Laches is an affirmative defense based primarily on circumstances that render it inequitable to grant relief to a dilatory plaintiff. The doctrine of laches arose from the requirement that a complainant in equity must come to the court with a clean conscience, in good faith, and after acting with reasonable diligence. If a plaintiff has not exercised reasonable diligence in vindicating his or her rights, a court sitting in equity may withhold relief on the ground that the plaintiff is chargeable with laches. Although timing is important, laches is not triggered by the passage of time alone; rather, it is the prejudice occasioned by the delay that justifies application of the doctrine to bar a claim. The defendant bears the burden of proving that the plaintiff's lack of diligence prejudiced the defendant sufficiently to warrant application of the doctrine of laches. [*Bayberry Group, Inc v Crystal Beach Condo Ass'n*, 334 Mich App 385, 410; 964 NW2d 846 (2020) (quotation marks and citations omitted).]

Hence, this Court has stated there are two basic requirements to the application of the doctrine of laches. There must be both a lack of diligence by the plaintiff and resulting prejudice to the defendant. See *id.*; *Knight v Northpointe Bank*, 300 Mich App 109, 114-115; 832 NW2d 439 (2013).

Here, with regard to plaintiffs' diligence, the trial court concluded that plaintiffs delayed in bringing the action, reasoning that the 1975 Judgment should have been considered "suspect" in the 1980s after the township's rezoning of one parcel, representing approximately 80 acres, without rezoning all three parcels, totaling 139 acres. However, the trial court's conclusion that this rezoning in the 1980s should have prompted a lawsuit or other action by plaintiffs is not supported by the record. First, the record is devoid of any evidence as to *why*, or under what circumstances, the township rezoned only one parcel in the 1980s. No evidence exists in the record to demonstrate or even infer that plaintiffs sought to use the entire 139 acres in the 1980s and that their request was rejected or that the township otherwise informed plaintiffs' predecessor that it would not honor the 1975 Judgment in its entirety.[2] Absent more information about the rezoning events in the 1980s, there is no reason to suppose that plaintiffs' rights under the

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judgment were abridged by the township in 1987, and there is no basis to conclude that plaintiffs slept on their rights. See *Sylvan Twp v City Of Chelsea*, 313 Mich App 305, 327-328; 882 NW2d 545 (2015) (concluding that laches did not apply when it could not be determined from the available record when it was practicable for the plaintiff to assert the right at issue).

***6** Moreover, the trial court's suggestion that suit should have been instituted within a couple years of the 1987 zoning decision is resoundingly undermined by the 2008 and 2015 Master Plans. The township's Master Plans for both 2008 and 2015, acknowledged the prior judgment and expressly stated that the township would abide by that judgment. The 2008 Master Plan stated:

> In Area C, in 1977, Ann Arbor Township accepted a court ordered mobile home park zoning on the north side of Warren Road, east of US-23. *The Township will permit the mobile home park to develop as directed by the court's decision.* Other areas of the Master Plan have been structured with this planning decision in place.

The township's most recent Master Plan, from 2015, contains identical language regarding the mobile-home lawsuit from the 1970s. The township's express recognition of the judgment—and the unequivocal statement of its intent to "permit the mobile home park to develop as directed by the court's decision"—clearly supports that plaintiffs had no reason to doubt the township's continued willingness to comply with the 1975 Judgment.[3] From this record there was no basis for the trial court to conclude that plaintiffs' sat on their rights as the township's continued recognition of plaintiffs' rights under the 1975 Judgment provided sound reason for any delay by plaintiffs in bringing suit. See *Angeloff v Smith*, 254 Mich 99, 101; 235 NW 823 (1931) ("[The defendant's] recognition of [the plaintiff's] title obviated the necessity of her asserting it against him by action."); *Backus v Backus*, 207 Mich 690, 695; 175 NW 400 (1919) (concluding that laches did not apply because, among other reasons, the defendant had "faithfully promised [the plaintiff] to transfer the Dime Bank stock to him from time to time").[4]

Indeed, it was not until the township refused to consider plaintiffs' site plan in November 2020 and for the first time disavowed the validity of the 1975 Judgment that would have triggered a suit by plaintiffs. See generally *Dorko v Dorko*, 504 Mich 68, 77; 934 NW2d 644 (2019) ("When a party breaches a substantive obligation arising out of a legal judgment, that breach gives rise to an independent cause of action. The harmed party then acquires the right to bring an action to enforce the judgment."). Hence, defendants made plaintiffs aware of their intent not to honor the 1975 judgment in November of 2020 and approximately three months later, plaintiffs filed this lawsuit. Three months to file suit does not constitute an unreasonable delay. See *Penrose v McCullough*, 308 Mich App 145, 154; 862 NW2d 674 (2014). Accordingly, the trial court clearly erred by finding unreasonable delay by plaintiffs in bringing suit.

***7** Additionally, even if plaintiffs unreasonably delayed, the township must also make a showing of prejudice. See *Sylvan Twp*, 313 Mich App at 327 ("[T]he primary inquiry when applying the doctrine of laches is whether the plaintiff's failure to earlier assert his or her claim prejudiced the defendant."). Here, considering the trial court's laches ruling, it is not clear to us that the trial court addressed prejudice, and by applying laches without a showing of prejudice, the trial court clearly erred. See *Bayberry Group, Inc*, 334 Mich App at 411-412. We also note that, typically, laches requires fact-finding. See *id.* In this case, however, the township sought to apply laches at the summary disposition stage, asserting that the facts relevant to laches were undisputed. In these circumstances, on the undisputed facts, this Court can address laches as a matter of law. See *Johnson Family Ltd Partnership, LLC*, 281 Mich App at 395. Specifically, on appeal, in arguing for affirmance of the trial court's laches decision, the township offers two bases on appeal on which prejudice should be found in this case: loss of evidence from the 1970s and changed circumstances. These arguments lack merit.

First, regarding the loss of evidence, prejudice to support a laches defense can arise from a loss of evidence, such as when important witnesses have died or material evidence has otherwise become unavailable. See *Knight*, 300 Mich App at 119-120. See, e.g., *Henderson v Connolly's Estate*, 294 Mich 1, 18; 292 NW 543 (1940). Here, plaintiffs' claim is quite narrow and rests on rights set forth in a court order. "[A] court speaks through its written orders and judgment." *In re Contempt of Henry*, 282 Mich App 656, 678; 765 NW2d 44 (2009). And the interpretation of a trial court's order is

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a question of law, *Silberstein v Pro-Golf of America, Inc*, 278 Mich App 446, 460; 750 NW2d 615 (2008), which involves enforcing unambiguous judgments as written. See *AFT v State*, 334 Mich App 215, 236; 964 NW2d 113 (2020) (holding that judgments should be interpreted using basic contract-interpretation principles). The 1975 Judgment—which represents the trial court's ruling and which represents the entire basis for plaintiffs' rights—still exists, and there is no ambiguity, nor has the township attempted to identify an ambiguity, that would require extrinsic evidence to resolve.

In their attempt to demonstrate prejudice from lost evidence, the township claims that the 1975 Judgment on its own is not enough because evidence relating to the original site plan no longer exists.[5] However, the 1975 Judgment did not incorporate the original site plan or otherwise order the implementation of a specific development plan. Instead, the 1975 Judgment unequivocally stated, in relevant part, that the zoning for the property—all 139 acres—was "invalid" and that plaintiffs, "or their successors," were "entitled to develop" the property "as a mobile home park in accordance with the terms and conditions of the ... [mobile-home] zoning classification contained in Ann Arbor Township's Zoning Ordinance and in compliance with public health and regulations." Given that the 1975 Judgment did not order implementation of a specific mobile-home-park plan, and given that the township has not otherwise identified any lost evidence material to the issues in this case, the township's lost-evidence argument lacks merit, and does not support the township's assertion of prejudice. See *In re Runco*, 463 Mich 517, 523; 620 NW2d 844 (2001) (rejecting laches defense when "the materials that had become unavailable over time did not include any that were necessary for resolution of the central issues").

***8** The township's change-of-circumstance argument is equally unsupported. In this regard, laches will apply when there is an unexcused delay in commencing the action and "a corresponding change of material condition that results in prejudice to a party." *Wayne Co v Wayne Co Retirement Comm*, 267 Mich App 230, 252; 704 NW2d 117 (2005) (quotation marks and citation omitted). In contrast, when "the situation of neither party has changed materially, and the delay of one has not put the other in a worse condition, the defense of laches cannot ... be recognized." *Id.* In this case, the township claims that there has been a change in circumstances because the township is now committed to "farmland preservation." This argument lacks merit for two reasons.

First, the record does not support the township's assertion of a *newfound* commitment to farmland preservation.[6] The township's Master Plan from 1971—as detailed in the township's brief on appeal to the Michigan Supreme Court in the previous lawsuit—included in its goals and objectives recognizing

> that *good agricultural land is a vital natural resource and should be protected insofar as possible*, recommending that the use of the most productive soils in the Township for other than agricultural purposes should be discouraged except when planned and orderly neighborhood concentrations are needed to meet the pressures of urban growth. [Emphasis added.]

In short, farmland preservation does not appear to be a novel goal for the township, and it does not constitute a change in circumstances supporting the invocation of laches to prevent the enforcement of the 1975 Judgment.

Second, the 2008 and 2015 Master Plans wholly undermine the township's claims of prejudice stemming from a change in circumstances. Again, both plans expressly state: "The Township will permit the mobile home park to develop as directed by the court's decision. *Other areas of the Master Plan have been structured with this planning decision in place.*" (Emphasis added.) Hence, the 1975 Judgment is not some long-forgotten judgment that had been overlooked by the township. Instead, as most recently stated in 2015, the township planned and structured its zoning decisions on the basis that a mobile-home park would be developed as directed in the 1975 Judgment.[7] Clearly, this is not a case in which the township made decisions or incurred expenses to its detriment on the basis that plaintiffs would *not* be enforcing their rights under the 1975 Judgment. See *Lyon Charter Twp v Petty*, 317 Mich App 482, 491; 896 NW2d 477 (2016) (compiling examples in which in the party asserting laches demonstrated a substantial change in position or extensive obligations incurred as a result of the other party's inaction). The township did not want a mobile-home park in 1975, and it may not want a mobile-home park now, but it has

been expressly planning for one on plaintiffs' property for 45 years. The parties' situation has not materially changed, and any delay by plaintiffs has not put the township is a worse condition.[8] See *Wayne Co*, 267 Mich App at 252. Accordingly, the township has not been harmed by plaintiffs' failure to file suit earlier, and there is no prejudice to the township in the enforcement of the 1975 Judgment. Absent prejudice to the township, laches does not apply. In sum, laches does not apply on the undisputed facts of this case, and the trial court erred by granting summary disposition to the township on the basis of laches.[9]

C. STATUTES OF LIMITATIONS

***9** As an alternate basis to affirm the trial court's grant of summary disposition to the township, the township asserts that plaintiffs request to enforce the judgment is barred by a statute of limitations. "[T]he running of the statute of limitations is an affirmative defense." *Stanke v State Farm Mut Auto Ins Co*, 200 Mich App 307, 312; 503 NW2d 758 (1993). The burden is on the defendant to raise the statute of limitations, see *id.*, and to ultimately "prove facts that bring the case within the statute," *Kincaid v Cardwell*, 300 Mich App 513, 522; 834 NW2d 122 (2013). In this case, the township has not shown that plaintiffs' claim is barred by a statute of limitations.

1. STATUTORY PROVISIONS

As an initial matter, the township appears somewhat uncertain about what specific statute of limitations, if any, should apply. The township begins with a broad argument that the "policies" underlying statutes of limitations should bar plaintiffs' claims. The township then mentions MCL 600.5809, but recognizes that there is caselaw stating that this provision only applies to the enforcement of a money judgment. If MCL 600.5809 does not apply, the township suggests that MCL 600.5801(4) should bar plaintiffs' claim. Neither statute identified by the township bars plaintiffs' claims in this case.

First, MCL 600.5809 expressly applies to "an action to enforce a noncontractual money obligation," which can include a money judgment. See MCL 600.5809(1), (3). A party seeking to enforce a money judgment or decree is subject to a 10-year period of limitations under MCL 600.5809(3). However, when, as in this case, there is "no money judgment" at issue, MCL 600.5809(3) is inapplicable. *Ins Comm'r v Aageson Thibo Agency*, 226 Mich App 336, 346; 573 NW2d 637 (1997). See also *Stabile v Gen Enterprises*, 70 Mich App 711, 716; 246 NW2d 375 (1976) (concluding that 10-year statute of limitations in MCL 600.5809 applied only to the enforcement of *money* judgments and decrees). For these reasons, MCL 600.5809 does not apply.

Second, MCL 600.5801 governs actions "for the recovery or possession of any lands or to make any entry upon any lands." In arguing that MCL 600.5801 bars plaintiffs' claim relating to the 1975 Judgment, the township relies on *Stabile*, 70 Mich App at 711. In that case, the plaintiffs filed suit in 1957, seeking to enjoin the defendants from obstructing and diverting the normal flow of the Clinton River. *Id.* at 713. The lawsuit resulted in a consent decree, entered in 1959. *Id.* Among other provisions, the consent judgment provided that, within six months, the defendants had to erect a barrier to redirect 2/3 of the water back to the original bed of the Clinton River, and the parties—for themselves, their heirs, assigns, etc.—agreed to maintain the resulting division of water. *Id.* at 714. If the defendants failed to fulfill this requirement, the consent judgment provided that the plaintiffs could petition the court for an injunction. *Id.* at 715. The consent judgment also specified that it could be registered with the Office of the Register of Deeds in Macomb County. *Id.*

The defendants did not restore the water flow, and when the plaintiffs sought enforcement of the order, the trial court concluded that the plaintiffs' claim was barred by the 10-year period of limitations in MCL 600.5809. *Id.* at 715-716. On appeal, this Court found MCL 600.5809 inapplicable, concluding, that it only applied to "the enforcement of money judgments and decrees." *Id.* at 716. Instead, this Court concluded that the 15-year period of limitations in MCL 600.5801(4) applied. *Id.* This Court explained:

> ***10** We find the 15-year statute of limitations embodied in MCL 600.5801(4); applicable in the instant case. The decree of September 10, 1959, *settled rights in land.* The parties by their express words intended it to operate as a grant of rights. Paragraph 6 of the judgment specifically provides that the decree instrument is recordable in the Macomb County Register of Deeds office. The property rights created by the decree, filed with the Register of Deeds, are what is sought to be enforced, not the underlying decree.

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> Were we to hold that the 10-year statute of limitations of MCL 600.5809, applied, we would face the anomaly of the defendants *gaining prescriptive rights in* 10 years. We find no legislative intention that this occur. [*Id.* at 716-717 (emphasis added).]

In this case, the township's reliance on MCL 600.5801 and *Stabile* is misplaced. Unlike the present case, *Stabile* involved an underlying property right—specifically flowage rights—that can be lost through prescription. See *Terlecki v Stewart*, 278 Mich App 644, 662; 754 NW2d 899 (2008) (applying MCL 600.5801(4) in the context for flowage easement dispute and explaining prescriptive easements and adverse possession in this context). The issue in *Stabile* was that, by their conduct, the defendants were engaging in acts that could result in them prescriptively obtaining property rights and at the same time extinguishing the plaintiffs' property right in that regard. In these circumstances, the plaintiffs in *Stabile* had 15 years to file suit or they faced the loss of property rights. In this case, however, the township fails to explain what underlying property rights are at issue. Further, the township has not explained what "open, notorious, continuous, and adverse use" it made of plaintiffs' property that would extinguish any of plaintiffs' property rights after 15 years. See *id.* To the contrary, as discussed, as recently as 2015, the township has recognized the continued validity of the 1975 Judgment, stating that it would allow a mobile-home development as required by the court's order. Accordingly, the township has failed to show that MCL 600.5801 applies as a time bar to plaintiffs' claim.

The township appears to recognize that it has not presented evidence to support that MCL 600.5809 or MCL 600.5801(4) bar the current action. Instead, the township provides a lengthy discussion of the policy rationales for statutes of limitations, and the township generally argues that *some* statute of limitations must bar plaintiffs' claim because 45 years is simply too long. However, the Legislature, not this Court, creates statutes of limitations, *Mair v Consumers Power Co*, 419 Mich 74, 85; 348 NW2d 256 (1984), and it is not the judiciary's role to create a new rule for the township simply because the township thinks it would be good policy. Moreover, it is ultimately the township's burden—as the party seeking to invoke a statute of limitations—to identify an applicable statute and to prove facts bringing this case within that statute. See *Kincaid*, 300 Mich App at 522. Having failed to establish that a statute of limitations barred plaintiffs' claim, the township was not entitled to summary disposition on this basis.

2. MODIFIABILITY OF INJUNCTIVE ORDERS

In the context of its statute-of-limitations argument, the township also contends that statutes of limitations should bar plaintiffs' claim because orders granting injunctive relief are always modifiable. However, we conclude that as a basis for dismissing a claim on statute-of-limitations grounds, the township's argument in this regard is without merit.

***11** Arguably, the 1975 Judgment could be construed to grant injunctive relief to plaintiffs' predecessors. The 1975 Judgment declared the township's zoning of the property unconstitutional, and the trial court in 1975 concluded that the Doletsky plaintiffs should be allowed to use the property for a mobile-home park, and the township was effectively enjoined from interfering with that use. See *Schwartz v Flint*, 426 Mich 295, 329; 395 NW2d 678 (1986) ("After a zoning ordinance has been declared unconstitutional, in addition to that declaration, a judge may provide relief in the form of a declaration that the plaintiff's proposed use is reasonable, assuming the plaintiff's burden has been met, and an injunction preventing the defendant from interfering with that use."). And, as emphasized by the township, " '[a] continuing decree of injunction directed to events to come is subject always to adaptation as events may shape the need.' " *First Protestant Reformed Church of Grand Rapids v De Wolf*, 358 Mich 489, 495; 100 NW2d 254 (1960), quoting *United States v Swift & Co*, 286 US 106, 114; 52 S Ct 460; 76 L Ed 999 (1932). See also MCR 2.612(C)(1)(e) (allowing a court to grant relief from judgment when it is no longer equitable for the judgment to have prospective application).

Even assuming arguendo that the 1975 Judgment constitutes an injunction subject to modification, it does not necessarily follow that a statute of limitations bars plaintiffs' claim. The township's argument in this regard is confusing and devoid of legal analysis. If anything, the township's assertion that the 1975 order is *always* modifiable is a tacit acknowledgment that the judgment is still valid and enforceable, otherwise there would be no need for modification. Additionally, even if the order is theoretically modifiable, the township would not have authority to unilaterally abrogate the 1975 Judgment. See *Troy v Holcomb*, 362 Mich 163, 169; 106 NW2d 762 (1961). Instead, the proper procedure would be for the township to apply to the court for modification of the decree, which the township has not done. See *id.*; see also MCR 2.613(B) ("A judgment or order may be set aside or vacated,

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and a proceeding under a judgment or order may be stayed, only by the judge who entered the judgment or order, unless that judge is absent or unable to act."). It would also be the township's burden to show a change of circumstances warranting modification. See *Swift & Co*, 286 US at 119. Thus, contrary to the township's arguments, modification of injunctions has nothing to do with the statute of limitations. For all these reasons, the township's modification argument, as a basis for summary disposition, lacks merit. The trial court erred by granting summary disposition to the township on the basis of laches, and the township has not shown that plaintiffs' claim related to the 1975 Judgment is barred by a statute of limitations. Accordingly, we reverse the grant of summary disposition to the township, and we remand for further proceedings.

D. RES JUDICATA, COLLATERAL ESTOPPEL, AND WAIVER

As noted, in addition to arguing that the trial court erred by granting summary disposition to the township, plaintiffs also argue that the trial court erred by denying plaintiffs' motion for summary disposition on the basis of res judicata, collateral estoppel, and waiver. However, plaintiffs have failed to include these issues in their statement of the questions presented on appeal as required by MCR 7.212(C)(5). These issues have not been properly presented for appellate review, and we decline to consider these issues at this time. See *Bouverette v Westinghouse Electric Corp*, 245 Mich App 391, 404; 628 NW2d 86 (2001). We note that the trial court did not rule on these issues, and plaintiffs should be allowed to raise these issues again on remand.

III. SUMMARY DISPOSITION RELATED TO PLAINTIFFS' COUNT II

Plaintiffs also argue that the trial court erred by dismissing their facial challenge to the 2020 zoning amendments on the basis that the claim was not ripe for judicial review. We concur that the trial court erred and we also reject the township's assertion that plaintiffs lacked standing to pursue this claim. However, we decline to address the merits of plaintiffs' claim at this time, and instead leave it to the trial court to address this issue on remand.

A. STANDARDS OF REVIEW

***12** Whether a plaintiff must exhaust administrative remedies before seeking judicial review implicates questions of subject-matter jurisdiction. See *Bruley v Birmingham*, 259 Mich App 619, 623; 675 NW2d 910 (2003). Whether a trial court has subject-matter jurisdiction presents a question of law that this Court reviews de novo. *Id.* More generally, questions involving ripeness are reviewed de novo. *Van Buren Charter Twp v Visteon Corp*, 319 Mich App 538, 542; 904 NW2d 192 (2017). Whether a party has standing presents a question of law, which this Court reviews de novo. *Manuel v Gill*, 481 Mich 637, 642; 753 NW2d 48 (2008).

B. ANALYSIS

Generally, a litigant has standing "if the litigant has a special injury or right, or substantial interest, that will be detrimentally affected in a manner different from the citizenry at large or if the statutory scheme implies that the Legislature intended to confer standing on the litigant." *Lansing Sch Ed Ass'n v Lansing Bd of Ed*, 487 Mich 349, 372; 792 NW2d 686 (2010). In the zoning context, a property owner, whose property is adversely affected by a zoning ordinance can be seen to have a special right or interest that will confer standing to challenge the facial validity of the ordinance. See *Randall v Twp Bd of Meridian Twp, Ingham Co*, 342 Mich 605, 607-608; 70 NW2d 728 (1955). See also 101A CJS, Zoning and Land Planning, § 26 ("[T]hose whose rights are or may be injuriously affected by the application or enforcement of a zoning regulation may attack its validity. Thus, the validity of an ordinance may be attacked by the owner of property affected ...."). However, property ownership is not necessarily required to confer standing to challenge a zoning ordinance. See generally *Sun Oil Co v Ferndale*, 6 Mich App 470, 472-473; 149 NW2d 485 (1967). For example, depending on the facts, a party who has contracted to purchase property may also have standing to challenge the constitutionality of a zoning ordinance. See *id.* (rejecting standing challenge when the plaintiff had a contractual relationship with the owner of the property and submitted a permit application for a gas station).

"The doctrine of ripeness is closely related to the standing doctrine in that it focuses on the timing of the action." *Van Buren Charter Twp v Visteon Corp*, 319 Mich App 538, 553; 904 NW2d 192 (2017) (quotation marks and citation omitted).

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"The ripeness doctrine requires that a party has sustained an actual injury to bring a claim. A party may not premise an action on a hypothetical controversy." *Id.* (citations omitted).

> In land use challenges, the doctrine of ripeness is intended to avoid premature adjudication or review of administrative action. It rests upon the idea that courts should not decide the impact of regulation until the full extent of the regulation has been finally fixed and the harm caused by it is measurable. [*Bruley*, 259 Mich App at 623 (quotation marks and citation omitted).]

Whether framed as a deprivation of due process or equal protection, or as takings claim, an "as applied" challenge to a zoning ordinance requires finality and an exhaustion of administrative remedies. *Paragon Props Co v Novi*, 452 Mich 568, 576; 550 NW2d 772 (1996); *Bruley*, 259 Mich App at 626-628.

> [T]he finality requirement is concerned with whether the initial decisionmaker has arrived at a definitive position on the issue that inflicts an actual, concrete injury; the exhaustion requirement generally refers to administrative and judicial procedures by which an injured party may seek review of an adverse decision and obtain a remedy if the decision is found to be unlawful or otherwise inappropriate. [*Bruley*, 259 Mich App at 628 (quotation marks and citation omitted).]

***13** Although an as-applied challenge requires finality and exhaustion of administrative remedies, a facial challenge may be brought in circuit court without first exhausting administrative remedies. *Id.* at 626-628. "Finality is not required for facial challenges because such challenges attack the very existence or enactment of an ordinance." *Paragon Props Co*, 452 Mich at 577. Further, when the issue involved is a constitutional challenge to the validity of the ordinance, exhaustion of the various administrative remedies can be considered "futile because [t]here is no sense in forcing a plaintiff to plod through the lengthy administrative process when only the courts have the authority to resolve the controlling constitutional issue." *Bruley*, 259 Mich App at 627 (quotation marks and citation omitted; alteration in *Bruley*). The difference between as-applied and facial challenges has been explained by our Supreme Court as follows:

> A facial challenge alleges that the mere existence and threatened enforcement of the ordinance materially and adversely affects values and curtails opportunities of all property regulated in the market. An "as applied" challenge alleges a present infringement or denial of a specific right or of a particular injury in process of actual execution. [*Paragon Props Co*, 452 Mich at 576 (citations omitted).]

Turning to the relevant claim in this case, in Count II of their complaint, plaintiffs alleged a facial challenge to the validity of the 2020 ordinance amendment. Briefly summarized, plaintiffs contend that the 2020 ordinance amendment—requiring final site-plan approval from the township—unconstitutionally conflicts with the requirements and procedures for approval of a mobile-home development as set forth in the MHCA. Relevant to plaintiffs' claim, "local governments may control and regulate matters of local concern when such power is conferred by the state." *DeRuiter v Byron Twp*, 505 Mich 130, 140; 949 NW2d 91 (2020). "State law, however, may preempt a local regulation either expressly or by implication. Implied preemption can occur when the state has occupied the entire field of regulation in a certain area (field preemption) or when a local regulation directly conflicts with state law (conflict preemption)." *Id.* (citations omitted). It would be unconstitutional for a township to attempt to regulate an issue preempted by state law. See *Walsh v River Rouge*, 385 Mich 623, 639; 189 NW2d 318 (1971).

Here, plaintiffs' claim that the township's ordinance is invalid because it conflicts with the MHCA is a constitutional

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attack to the facial validity of the township's ordinances. See, e.g., *Jott*, *Inc v Clinton Charter Twp*, 224 Mich App 513, 544; 569 NW2d 841 (1997) (rejecting ripeness objections and considering constitutional challenges to disputed ordinance, including preemption). Plaintiffs—as the owner (J.A. Bloch) and proposed developer and purchaser of the property (Sun ACQ) [10]—have standing to litigate this question impacting the property and, more specifically, the proposed development. Moreover, because the claim involves a facial challenge, plaintiffs' failure to pursue additional administrative remedies does not prevent plaintiffs from seeking judicial review of the constitutional, facial challenge. See *Bruley*, 259 Mich App at 626-628. The trial court erred by concluding that the claim was not ripe. See *id.*

***14** On appeal, as in the trial court, the township contends that plaintiffs are impermissibly seeking an "advisory opinion." Relying on caselaw involving the Michigan Supreme Court's authority to issue advisory opinions under Const. 1963, art. 3, § 8, the township contends that an advisory opinion is not warranted on the facts of this case because neither the Legislature nor the governor have requested such an opinion. The township's reliance on this body of law is wholly misplaced. Const. 1963, art. 3, § 8, states: "Either house of the legislature or the governor may request the opinion of *the supreme court* on important questions of law upon solemn occasions as to the constitutionality of legislation after it has been enacted into law but before its effective date." (Emphasis added). And Justice MARKMAN's opinion on which the township relies—from *Woodman ex rel Woodman v Kera LLC*, 486 Mich 228; 785 NW2d 1 (2010)—involved the Supreme Court's authority to issue an advisory opinion. These principles regarding advisory opinions by the Supreme Court simply have no applicability in this case. At best, in relying on *Woodman* and Const. 1963, art. 3, § 8, the township seems to be suggesting that there is no actual controversy and that the trial court should not address a hypothetical issue. However, for the reasons already discussed, there is an actual controversy regarding the validity of the 2020 ordinance that is ripe for judicial review, and plaintiffs have standing to litigate that question. Accordingly, the township's "advisory opinion" argument lacks merit.

Relatedly, as part of its assertion that there is no controversy for a court to decide, the township asserts that the MHCA does not actually apply to plaintiffs' property because there is a difference between "manufactured housing" and a "mobile home," and according to the township, plaintiffs plan to build a manufactured-housing development rather than a mobile-home park. This assertion lacks merit. Relevant to the township's argument, under the MHCA:

> "Mobile home" means a structure that is transportable in 1 or more sections, built on a chassis, and designed to be used as a dwelling, with or without a permanent foundation, when connected to the required utilities, and includes the plumbing, heating, air-conditioning, and electrical systems contained in the structure. [MCL 125.2302(h).]

For purposes of the MHCA, this Court has recognized that the terms "manufactured house" and "mobile home" appear to be synonymous. *Mortgage Elec Registration Sys, Inc v Pickrell*, 271 Mich App 119, 121 n 3; 721 NW2d 276 (2006). [11] Moreover, even if there were an argument to be made that there is—or can be—a difference between manufactured homes and mobile homes, the township presented insufficient factual support for its contention that plaintiffs' proposed development will contain housing that does not satisfy the MHCA's definition of "mobile homes." The township has not shown that the MHCA does not apply to this dispute.

With regard to plaintiffs' Count II, we note that, on appeal, plaintiffs ask this Court to go further than addressing the threshold ripeness and standing issues to actually rule on the constitutionality of the township's 2020 amendments. In our view, this issue has not yet been addressed by the trial court, and although the question is one of law that we could potentially decide in the first instance, there also exists a "general presumption" that this Court "will not reach constitutional issues that are not necessary to resolve a case." *Booth Newspapers, Inc v Univ of Mich Bd of Regents*, 444 Mich 211, 234; 507 NW2d 422 (1993). At this point, there is still much to be addressed on remand, particularly with regard to the 1975 Judgment, and the case would not be resolved by addressing the constitutionality of the 2020 amendments. In these circumstances, we decline to address this issue at this time. See *id.* Instead, we leave the issue to be addressed on remand.

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IV. INTERVENTION

***15** Lastly, plaintiffs argue that the trial court abused its discretion by allowing intervenors to intervene. We review a trial court's decision on a motion to intervene for an abuse of discretion. *Auto-Owners Ins Co v Keizer-Morris, Inc*, 284 Mich App 610, 612; 773 NW2d 267 (2009). "An abuse of discretion occurs when the decision results in an outcome falling outside the principled range of outcomes." *Id.* (quotation marks and citations omitted). We conclude that the trial court did not abuse its discretion by granting intervenors' motion to intervene in this case.

"Intervention is an action where a third party becomes a party in a suit that is pending between others." *Hill v LF Transp, Inc*, 277 Mich App 500, 508; 746 NW2d 118 (2008). Intervenors moved to intervene as of right under MCR 2.209(A)(3) or permissively under MCR 2.209(B). These provisions state:

> (A) Intervention of Right. On timely application a person has a right to intervene in an action:
>
> * * *
>
> (3) when the applicant claims an interest relating to the property or transaction which is the subject of the action and is so situated that the disposition of the action may as a practical matter impair or impede the applicant's ability to protect that interest, unless the applicant's interest is adequately represented by existing parties.
>
> (B) Permissive Intervention. On timely application a person may intervene in an action
>
> * * *
>
> (2) when an applicant's claim or defense and the main action have a question of law or fact in common.
>
> In exercising its discretion, the court shall consider whether the intervention will unduly delay or prejudice the adjudication of the rights of the original parties. [MCR 2.209.]

"The rule for intervention should be liberally construed to allow intervention where the applicant's interests may be inadequately represented." *Hill*, 277 Mich App at 508 (quotation marks and citation omitted). Intervention may be denied, however, when "it will have the effect of delaying the action or producing a multifariousness of parties and causes of action." *Id.* (quotation marks and citation omitted). Although the court rule requires a proposed intervenor to claim an interest in the property, it is not necessary that a party seeking intervention prove a "meritorious claim" at the intervention stage. *Id.* at 508-509. Further, although intervention requires a possibility of inadequate representation, "the concern of inadequate representation of interests need only exist; inadequacy of representation need not be definitely established." *Vestevich v West Bloomfield Twp*, 245 Mich App 759, 762; 630 NW2d 646 (2001).

Here, whether the trial court granted intervention as of right or permissively is not entirely clear from the record, but the trial court's reasoning seems to support that the trial court concluded that intervenors were entitled to intervene as right under MCR 2.209(A)(3). Specifically, following a hearing and oral argument from the parties, the trial court granted intervenors' motion to intervene, reasoning:

> All right. I am persuaded that the proposed Intervenors do have an interest in the outcome of this matter and also that their interest is while it might be aligned with that of the Township, it is different from that of the Township and greater or more specific or particular to the Village than either the Township's general interest in enforcing its zoning regulations. And I will therefore grant the motion to intervene.
>
> I agree with the Intervenor that the arguments made against intervention primarily go to the merits of the case rather than to whether or not the Village of Barton Hills has an adequate interest justifying intervention in the case and there will be a time and place for those arguments to be heard, but it's not on the motion to intervene.

***16** The intervenors' interest related to the property more specifically involved an aquifer under plaintiffs' property from which intervenors draw their municipal water supply, an interest which could be affected by a mobile-home development. Contrary to plaintiffs' arguments on appeal, the trial court did not abuse its discretion by concluding that intervenors claimed "an interest relating to the property" at issue in this case. Cf. *Vestevich*, 245 Mich App at 762 (concluding that nearby landowners had an interest sufficient to support intervention in a land-use dispute when they were concerned that "their interests would be affected by the commercial development of the residentially zoned parcel, by way of neighborhood character, property values, traffic patterns, and the like"). Whether intervenors' claim to an interest related to the property has any merit is not the

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issue; it is enough that they are able to claim an interest related to the property. See *Hill*, 277 Mich App at 508. Further, although the township and proposed intervenors are aligned in opposition to a mobile-home development, there is a possibility that the township, which is mainly concerned with its overall zoning plan and which has not expressed any particular concern for the neighboring community's water supply, will not adequately represent intervenors' interests. See *D'Agostini v Roseville*, 396 Mich 185, 189; 240 NW2d 252 (1976). Consequently, the trial court did not abuse its discretion by granting intervenors' motion to intervene. See MCR 2.209(A)(3).

In sum, we reverse the grant of summary disposition to the township, affirm the trial court's decision to allow intervention, and remand for further proceedings consistent with this opinion. We do not retain jurisdiction. No costs are awarded. MCL 7.219(A).

All Citations

Not Reported in N.W. Rptr., 2022 WL 17876842

Footnotes

1 The zoning that permitted mobile-homes in the township at the time of the trial court's ruling was the R-6 zoning on one of plaintiffs' parcels. Since the trial court's ruling, the township has rezoned this parcel to R-2 for single-family suburban residential development.

2 Although not evidence, statements by the township's attorney at the summary disposition hearing on November 18, 2021, support the opposite—that the township fully honored the 1975 Judgment in the 1980s by granting J.A. Bloch's request in its entirety, which at that time only implicated 80 acres of the property. Specifically, the township's attorney explained his understanding of the 1987 zoning decision as follows: "It was in 1987 is my understanding which is when Mr. Bloch had asked at that time to put 500 mobile homes east of US-23 *on the 80 acres.* He started that process, the Township started working with him. He abandoned the project." The site plan review report related to the plans in the 1980s supports counsel's assertion that J.A. Bloch only planned to put mobile home on 80 acres (the parcel on the north side of Warren Road, east of US-23), and the report acknowledged that the site was zoned for mobile-home park use as a "result of a court order." Further, the meeting minutes for the zoning approval from November 1987 simply speak of approving a zoning request; there is no indication that a request to rezone the remaining two parcels was denied. If, as counsel's comments and the evidence suggest, the plan in 1987 was only to use 80 acres for mobile homes and the township fully honored this request consistent with the requirements of the 1975 Judgment, plaintiffs had no cause to complain and no reason to file suit at that time.

3 The township argues on appeal that it only intended to honor the mobile-home zoning north of Warren Road, east of US-23, meaning that it was not agreeing to honor the entire judgment, which allowed for development of 139 acres. However, that is not what the Master Plans stated. The Master Plans unequivocally stated that the township would permit development "as directed by the court's decision," which unambiguously applied to all 139 acres.

4 See also 30A CJS, Equity, § 168 ("The continued recognition or acknowledgment by the defendant of plaintiff's right is generally sufficient to account for delay in instituting suit to enforce it; thus, where the opposing party has continued to recognize the adverse right sought to be enforced, the period of prescription begins to run from the last recognition.").

5 Although trial court materials resulting in the 1975 Judgment have reportedly been lost, we note that the parties presented the trial court in this case with the Michigan Supreme Court's lengthy record from the 1970s,

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which provides ample context for the trial court's ruling. And the 1975 Judgment is of course in addition to two written opinions by the trial court, both of which still exist.

6 This claim that a newfound commitment to farmland preservation supports disavowing the 1975 Judgment is also questionable sincerity given that, within months of the grant of summary disposition to the township in this case, the township undertook to rezone two of plaintiffs' parcels—including a parcel zoned A-1 for agriculture—to R-2, for single-family suburban residential. These rezoning efforts after the grant of summary disposition are part of the record before us because we granted plaintiffs' motion to expand the record. *J.A. Bloch and Co v Ann Arbor Township*, unpublished order of the Court of Appeals, entered October 10, 2022 (Docket No. 359265). Nevertheless, these materials are not necessary to our conclusion that the trial court erred by granting summary disposition to the township, and we instead limit our review to the evidence presented to the trial court at the time the motion was decided. See *Pena v Ingham Co Rd Comm*, 255 Mich App 299, 310, 313 n 4; 660 NW2d 351 (2003); see also MCR 2.116(G)(5).

7 Indeed, as supported by evidence submitted by plaintiffs in the trial court, the township has in fact denied other rezoning requests for mobile-home parks, including within the reasons for the denial the fact that another area of the township, i.e., plaintiffs' property, was zoned for a mobile-home park as a result of the prior judgment. In its summary disposition response brief in the trial court, and on appeal, the township claimed that it would have made different planning decisions if it had *not* been honoring the 1975 Judgment.

8 If anything, the passage of time has likely benefited the township insofar as there has been an increase in environmental regulations and other health and safety matters over the last 45 years that will govern plaintiffs' development today. Cf. *Great Lakes Gas Transmission Co v MacDonald*, 193 Mich App 571, 578; 485 NW2d 129 (1992) ("If anything, defendants may have benefited from the increased level of environmental regulation that has developed since the easement agreement was recorded in 1967.").

9 With regard to laches, we note that plaintiffs appear to argue that laches could *never* bar enforcement of a nonmoney judgment related to land use. Plaintiffs' cursory treatment of this issue constitutes abandonment. See *State Treasurer v Sprague*, 284 Mich App 235, 243; 772 NW2d 452 (2009) ("Failure to brief a question on appeal is tantamount to abandoning it."). Moreover, it is unnecessary to address this issue because it is readily apparent that laches does not apply to the facts of this case.

10 J.A. Bloch presented evidence to support that it owns the property. Plaintiffs also alleged in their complaint that, in July 2018, J.A. Bloch entered into an agreement to sell the property to Sun ACQ, an affiliate of Sun Communities, which operates numerous mobile-home parks in Michigan. There is also evidence that Sun ACQ submitted a preliminary site plan to the township related to the property. However, the purchase contract between J.A. Bloch and Sun ACQ does not appear in the lower court record, and accordingly the township questions Sun ACQ's involvement in this case. However, even if the failure to present the sale contract supported that Sun ACQ lacked standing, J.A. Bloch—as the property owner—would still have standing in this case.

11 See also *Bennett v CMH Homes, Inc*, 770 F3d 511, 517-518 (CA 6, 2014) (Stranch, J., dissenting) ("Until the late 1970's, manufactured homes were generally called 'mobile homes.' ... In response to a negative stigma against 'mobile homes,' the industry responded by coining the term 'manufactured home' that—though naming the same product—was intended to impart a better impression."); *Thiel v Goyings*, 504 Mich 484, 503 n 5; 939 NW2d 152 (2019) (distinguishing "mobile and manufactured home" from "modular homes" for purposes of a restrictive covenant and explaining that "[m]obile and manufactured homes are built on an automotive-type frame that incorporates an axle or metal chassis").

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UNPUBLISHED OPINION. CHECK

COURT RULES BEFORE CITING.

Court of Appeals of Michigan.

Edward CHVALA, Plaintiff–Appellee,

v.

Edwin BLACKMER, a/k/a Edwin R. Blackmer, Defendant,

James R. NODINE, Intervenor Appellant.

No. 221317.

Jan. 16, 2001.

2001 WL 789526
Only the Westlaw citation is currently available.

UNPUBLISHED OPINION. CHECK
COURT RULES BEFORE CITING.

Court of Appeals of Michigan.

Edward CHVALA, Plaintiff–Appellee,
v.
Edwin BLACKMER, a/k/
a Edwin R. Blackmer, Defendant,
James R. NODINE, Intervenor Appellant.

No. 221317.
|
Jan. 16, 2001.

Before: WILDER, P.J., and HOOD and CAVANAGH, JJ.

Opinion

PER CURIAM.

***1** Intervenor defendant appeals by leave granted from an order denying his motion to intervene. We reverse.

On March 1, 1999, plaintiff filed a suit to quiet title to property purchased through a tax sale. Plaintiff named Edwin Blackmer (hereinafter Blackmer) as the sole defendant and owner of the property. On April 2, 1999, intervenor defendant, James R. Nodine, filed a petition to intervene. Intervenor defendant alleged that he had purchased the subject property with Blackmer in 1991, but the deed indicated that Blackmer was the sole purchaser. Intervenor defendant further alleged that, on July 26, 1996, Blackmer had sold his interest in the property to intervenor defendant. Allegedly, an express contract documented the sale, but the contractual parties failed to execute and record a deed to evidence the transaction. Intervenor defendant alleged that Blackmer no longer held an interest in the property, and any interest in the property held by intervenor defendant would not be represented in the action. Intervenor defendant also sought to file a countercomplaint against plaintiff and a crossclaim against Blackmer. Intervenor defendant alleged that the statutory requirements to quiet title had not been satisfied, and Blackmer should be compelled to execute a warranty deed to the property.

On May 10, 1999, a hearing was held regarding the motion to intervene. The trial court did not examine the requirements of MCR 2 .209(A)(3), but rather determined that an evidentiary hearing would be held on the issue of inhabitability. That is, the trial court would only address whether the statutory requirements involving notice of an improved residential dwelling had been satisfied and whether such a dwelling was present on the subject property. The trial court then held that if notice had not been established for a suitable dwelling, the motion for intervention would be granted at that time. The trial court also advised intervenor defendant that any *additional* research involving the issues could be presented in the form of a petition for *rehearing* at the time of the evidentiary hearing. An order reflecting the trial court's decision entered and provided:

> IT IS ORDERED that an evidentiary hearing shall be held on June 7, 1999, at 2 p.m., on the issue whether the property was an improved residential parcel on June 18, 1998, which is the date that plaintiff represented, in a Notice to Redeem, that it was not an improved residential parcel. If the court finds at such hearing that the property was an improved residential parcel, on the applicable date, the motion to intervene shall be granted.
>
> IT IS FURTHER ORDERED that intervening party, James R. Nodine, shall have the right to file a motion for rehearing on the other reasons that he argues in support of his motion to intervene.

On June 7, 1999, the date set for the evidentiary hearing, intervenor defendant presented the trial court with a motion for rehearing as the court directed, although this motion contained new allegations that the notice requirements were defective on other grounds, such as failing to notify prior record owners of the property of the tax sale as required by statute. Although the filing complied with the trial court's instructions, the trial court declined to address the issues raised in the motion for rehearing. During the evidentiary hearing, the trial court also declined to admit evidence based on the fact that the hearing was limited to the issue of whether an improved residential parcel existed on the property. When counsel for intervenor defendant inquired when the remaining issues of the case would be addressed, the trial judge responded, “You might never.” After hearing testimony from several witnesses, counsel for intervenor defendant sought to recall him to the stand for rebuttal testimony. The trial court refused to hear any testimony because the issue involved a “motion.” The trial court also refused counsel's request to preserve the testimony through an offer of proof. The trial

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judge said, "No, You're all done." The trial court concluded that an improved residential parcel was not involved in the case. The trial court also concluded that intervenor defendant did not have an equitable claim and did not pay any taxes, although this conclusion was contrary to the testimony of intervenor defendant and the clerk, Delores Hasty. The motion to intervene was denied. When advised that a motion for rehearing would be *filed,* the trial court immediately denied the motion without even being advised of the basis for the motion. When advised that the court rules expressly provide for motions for reconsideration, the trial court indicated that it would read the court rules and determine whether the motion would be heard. Ultimately, plaintiff obtained the relief requested in his complaint to quiet title through a default judgment because Blackmer failed to appear and defend the action. We granted intervenor defendant's application for leave to appeal.

***2** Intervenor defendant argues that the trial court erred in conditioning a decision on the motion to intervene on the habitability of the property involved, erred in requiring an evidentiary hearing on the issue without accepting all evidence involved in intervenor defendant's issues, and denied intervenor defendant due process of law by failing to accept evidence and rendering decisions without all the evidence presented or the opportunity to brief the issues. We agree. MCR 2.209 provides, in relevant part:

> (A) Intervention of Right. On timely application a person has a right to intervene in an action:
>
> (3) when the applicant claims an interest relating to the property or transaction which is the subject of the action and is so situated that the disposition of the action may as a practical matter impair or impede the applicant's ability to protect that interest, unless the applicant's interest is adequately represented by existing parties.

The decision to grant or deny a motion to intervene rests in the discretion of the trial court, and we review that decision for an abuse of discretion. *Mahesh v. Mills,* 237 Mich.App 359, 364–365; 602 NW2d 618 (1999). However, in the present case, the trial court did not expressly rule on the propriety of intervention, but rather correlated any decision on the motion to intervene with a statutory issue involving quiet title as alleged in the initial complaint. The interpretation and application of court rules presents a question of law that is reviewed de novo. *Grzesick v. Cepela,* 237 Mich.App 554, 559; 603 NW2d 809 (1999). When interpreting the Michigan Court Rules, we apply the rules of statutory construction. *Terra Energy, Ltd v. State of Michigan,* 241 Mich.App 393, 401; 616 NW2d 691 (2000). The primary rule of statutory construction is to effectuate the intent of the Legislature by considering the purpose of the statute and the object sought to be achieved. *Hopkins v. Parole Board,* 237 Mich.App 629, 640; 604 NW2d 686 (1999). When the statutory language is plainly expressed, the Legislature intended the meaning articulated, and the statute must be enforced as written. *Sun Valley Foods Co v. Ward,* 460 Mich. 230, 236; 596 NW2d 119 (1999).

Review of MCR 2.209(A)(3) reveals that the plainly expressed language promulgated by the Supreme Court provides that three elements are required to intervene by right: timely application, a showing that the representation of the applicant's interests by existing parties is or may be inadequate, and a determination whether disposition of the action may, as a practical matter, impair or impede the applicant's ability to protect his interests. *Oliver v. State Police Dep't,* 160 Mich.App 107, 115; 408 NW2d 436 (1987). Furthermore, review of the plainly expressed language of the court rule reveals that the intervening applicant need not present documentary evidence with the motion or present proofs at an evidentiary hearing to disprove the allegations in the *initial* complaint. Rather, MCR 2.209(C) sets forth the procedure for seeking intervention. This court rule provides that the person seeking to intervene need only file a motion, give notice to all parties, state the grounds for intervention, and provide a pleading stating the claim or defense for which intervention is sought. There is no requirement that an evidentiary hearing be held or that documentary evidence be filed to support the motion to intervene. [1]

***3** Furthermore, the trial court erred when it allowed the ultimate issues involved in the initial complaint to impact the requirements of MCR 2.209(A)(3). Plaintiff did not dispute that the timeliness element of MCR 2.209(A)(3) was satisfied. Secondly, intervenor defendant's interests were not adequately represented by Blackmer. Blackmer did not, in any manner, defend the action. Furthermore, it was alleged that Blackmer was not a proper defendant in the action because Blackmer had transferred his interest in the property to intervenor defendant in 1996. [2] Based on the allegations contained within the motion to intervene and oral statements of counsel, the second element of MCR 2.209(A)(3) was satisfied. The last element requires a determination whether disposition of the action impairs or impedes intervenor defendant's ability to protect his

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interests. Intervenor defendant alleged that he purchased the property with Blackmer and two other individuals. It was further alleged that the interest of the deed holder, Blackmer, was discharged to intervenor defendant in 1996. The interest of the remaining two individuals was to be discharged by intervenor defendant upon the sale of the property. The failure to grant intervenor defendant's motion to intervene caused, under these circumstances, forfeiture of all property interests. Accordingly, the trial court erred in denying intervenor defendant's motion to intervene where the requirements of MCR 2.209(A)(3) were satisfied and erred in relating intervenor defendant's motion to intervene to the merits of the disposition of the initial complaint. [3]

Reversed.

All Citations

Not Reported in N.W.2d, 2001 WL 789526

Footnotes

1 In contrast, MCR 2.116(C)(10) provides that summary disposition may be granted where there are no genuine issues of material fact. MCR 2.116(G)(4) and (G)(5) sets forth the burdens on the respective parties in moving for and opposing summary disposition. A party may not rest on the mere allegations in the pleadings, but must present documentary evidence in support. MCR 2.116(G)(4) and (G)(5). There is no documentary or other evidentiary requirement set forth in MCR 2.209(A). Accordingly, we will not read such a requirement into the court rule when it is not plainly expressed. *Sun Valley, supra.*

2 The trial court failed to address this allegation at the hearing or otherwise, yet proceeded to allow the default judgment against Blackmer. If Blackmer has transferred the property interest as alleged, it is questionable whether this default judgment is of any consequence, and we cannot reach this issue based on the record on appeal.

3 We note that MCR 2.209(A)(3) provides that the applicant must claim “an interest relating to the property or transaction which is the subject of the action ...” Plaintiff does not take issue with this allegation in the motion to intervene. In any event, property interests are created and their dimensions defined by existing rules or from independent sources such as state law. *Meagher v. Wayne State University,* 222 Mich.App 700, 720; 565 NW2d 401 (1997), quoting *Bd of Regents of State Colleges v Roth,* 408 U.S. 564, 577; 92 S Ct 2701; 33 L.Ed.2d 548 (1972). Michigan case law recognizes that a property right may come from contract or statute. *Id.* Intervenor defendant alleged that he had acquired all rights to the subject property from Blackmer by written contract. In light of the fact that a deprivation of property rights was alleged, the trial court's constraints on the proofs allowed at the evidentiary hearing are particularly troubling and erroneous.

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UNPUBLISHED OPINION. CHECK
COURT RULES BEFORE CITING.

Court of Appeals of Michigan.

David A. CYNAR, Plaintiff-Appellant,

v.

VILLAGE OF DEXTER COUNCIL, Philip Arbour, Jim Adams, Paul Cousins, Jim Gillett,
John Rush, Ray Tell, Diane Walters, and Donna L. Fisher, Defendants-Appellees.

No. 198088.

Nov. 21, 1997.

1997 WL 33330968
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UNPUBLISHED OPINION. CHECK COURT RULES BEFORE CITING.

Court of Appeals of Michigan.

David A. CYNAR, Plaintiff-Appellant,
v.
VILLAGE OF DEXTER COUNCIL, Philip Arbour, Jim Adams, Paul Cousins, Jim Gillett, John Rush, Ray Tell, Diane Walters, and Donna L. Fisher, Defendants-Appellees.

No. 198088.
|
Nov. 21, 1997.

Before: MacKENZIE, P.J., and SAWYER and NEFF, JJ.

UNPUBLISHED

PER CURIAM.

***1** Plaintiff appeals as of right from the order granting defendants summary disposition. We reverse in part and affirm in part.

Plaintiff brought this suit against defendants, alleging violations of the Open Meetings Act (OMA), M.C.L. § 15.261 *et seq.;* MSA 4.1800(11) *et seq.,* and the Freedom of Information Act (FOIA), M.C.L. § 15.231 *et seq.;* MSA 4.1081(1) *et seq.* Plaintiff's allegations arise out of the sale of four lots in the Dexter Business and Research Park, owned by Dexter Village. At two separate meetings, defendants entered into closed session to consider offers to purchase lots in the park, returning each time to open session to vote on the proposals before adjourning. When plaintiff learned of the first closed session, he requested that defendants provide him with the records pertaining to the land sale that they discussed. Defendants unsealed the minutes of the first closed session and sent plaintiff a copy along with their letter promising to hold discussions about real estate transactions in open session except when "highly sensitive circumstances" warrant a closed session.

Defendants moved for summary disposition both on the merits of plaintiff's claims and on mootness grounds. The lower court did not state its reasons for deciding to grant defendants summary disposition; however, the lower court's failure to address the issues that were raised and argued by the parties below does not preclude this Court's consideration of the issue on appeal. *Peterman v. Dep't of Natural Resources,* 446 Mich. 177, 183; 521 NW2d 499 (1994). The facts necessary for resolving the questions of law raised in this issue are present. *Adam v. Sylvan Glynn Golf Course,* 197 Mich.App 95, 98-99; 494 NW2d 791 (1992). Because both parties submitted documentary evidence to the lower court, summary disposition was appropriately granted under MCR 2.116(C)(4) and MCR 2.116(C)(10). MCR 2.116(G)(5); *Shirilla v. Detroit,* 208 Mich.App 434, 436-437; 528 NW2d 763 (1995). Therefore, this Court examines all relevant affidavits, depositions, admissions, and other documentary evidence and construes the evidence in favor of the nonmoving party. *Id.* at 437. This Court then determines whether a genuine issue of material fact exists on which reasonable minds could differ or whether the movant is entitled to judgment as a matter of law. *Id.; Steele v. Dep't of Corrections,* 215 Mich.App 710, 712; 546 NW2d 725 (1996).

I

Plaintiff first argues that the lower court should not have dismissed his OMA claims. The OMA mandates that all "decisions" of such a public body must be made in a public meeting, M.C.L. § 15.263(2); MSA 4.1800(13)(2), yet it allows certain "deliberations" during closed sessions, M.C.L. § 15.263(3); MSA 4.1800(13)(3). *Moore v Fennville Public Schools Bd of Ed,* 223 Mich.App 196, 200; 566 NW2d 31 (1997). The threshold question here is whether defendants' actions in either disclosing the minutes of the two closed sessions or promising to hold open sessions in the future rendered plaintiff's OMA claims moot.

> ***2** A moot case is one which seeks to get a judgment on a pretended controversy, when in reality there is none, or a decision, in advance, about a right before it has been actually asserted and tested, or judgment upon some matter which, when rendered, for any reason cannot have practical legal effect upon the then existing controversy. *Parsons Investment Co v. Chase Manhattan Bank,*

466 F.2d 869 (CA 6, 1972). [*Menominee Co Taxpayers Alliance, Inc v Menominee Co Clerk,* 139 Mich.App 814, 819-820; 362 NW2d 871 (1984) .]

In this case, defendants' disclosure of the minutes of the closed sessions rendered moot plaintiff's prayer for relief for court-ordered disclosure. MCL 15.267(2); MSA 4.1800(17)(2). However, it is clear from the pleadings that plaintiff sought not only the disclosure of records but also an injunction against future violations and the invalidation of the sales at issue. Both of these remedies are provided for in the OMA. M.C.L. § 15.271; MSA 4.1800(21); MCL 15.270(2); MSA 4.1800(20)(2). In light of plaintiff's request for an injunction, defendants' letter is not likely to render plaintiff's OMA claim moot because defendants' promise about holding future open sessions was conditioned upon whether there are "highly sensitive circumstances" present. It is true that the OMA permits a public body to conduct a closed session to consider material exempt from disclosure by state statute, M.C.L. § 15.268(h); MSA 4.1800(18)(h), such as the FOIA's exemption for "information of a personal nature" that constitutes "a clearly unwarranted invasion of an individual's privacy," M.C.L. § 15.243(1)(a); MSA 4.1801(13)(1)(a). See, e.g., *Ridenour v Dearborn School Dist Bd of Ed,* 111 Mich.App 798, 802-803; 314 NW2d 760 (1981). However, defendants' letter to plaintiff is unclear about whether the village council would define "highly sensitive circumstances" the same as an invasion of privacy or whether it would again consider the details of a real estate transaction sufficiently sensitive to warrant a closed session. Therefore, injunctive relief would still be available to plaintiff, assuming his OMA claim has merit.

Similarly, in light of plaintiff's request for an invalidation of defendants' closed session decisions, neither defendants' letter nor disclosure of the minutes is likely to render plaintiff's OMA claim moot because neither action returned the parties to their previous positions as an order for invalidation would do. If defendants' decisions violated the OMA, then the court could fashion a remedy for this aspect of the controversy. In short, because the OMA provides a successful complainant with these two remedies and either remedy could have been fashioned for the alleged OMA violations in controversy here, the lower court erred when it declared this case moot.

Nonetheless, the lower court's grant of summary disposition may have been properly ordered if defendants were entitled to judgment as a matter of law on plaintiff's OMA claims. The merit of plaintiff's OMA claims turns on whether defendants' actions during the closed sessions constituted a "decision" as defined by the OMA that should have been made during open session, or whether defendants' actions were excepted from the act as closed session deliberations "to consider the purchase or lease of real property up to the time an option to purchase or lease that real property is obtained." MCL 15.268(d); MSA 4.1800(18)(d). Under the act, "decision" means "a determination, action, vote, or disposition upon a motion, proposal, recommendation, resolution, order, ordinance, bill, or measure on which a vote by members of a public body is required and by which a public body effectuates or formulates public policy." MCL 15.262(d); MSA 4.1800(12)(d).

***3** It is clear to us that, like the board's actions in *Booth Newspapers, Inc v Bd of Regents of the University of Michigan,* 444 Mich. 211, 229; 507 NW2d 422 (1993), defendants' actions in closed session here were not mere deliberations. Although defendants returned to open session to vote, they were by that point merely announcing publicly the decision at which they arrived during closed session. Any alleged distinction between consensus building and a determination or action, as advanced in the OMA's definition of "decision," is a distinction without a difference. *Id.* at 227. To hold otherwise would "undermine the legislative intent to promote responsible and open government." *Id.* Consequently, the decisions about the real estate in this case should have been made during open session. MCL 15.263(2); MSA 4.1800(13)(2). Because we hold that defendants' actions constituted decisions, not deliberations, we decline to enter the parties' discussion about the legislative intent of M.C.L. § 15.268(d); MSA 4.1800(18)(d), an exception for certain types of deliberations. *Moore, supra* at pp 7-9.

The next question is whether invalidation of those decisions is required. A court may consider invalidation when the plaintiff's complaint is filed "within thirty days after the approved minutes are made available to the public pursuant to that decision." MCL 15 .270(3)(b); MSA 4.1800(20)(3)(b), *Cape v. Howell Bd of Ed,* 145 Mich.App 459, 465-466; 378 NW2d 506 (1985). Plaintiff's February 26, 1996, complaint is timely because defendants published the minutes of the January meetings on February 1 and 12, 1996. Invalidation of decisions made in contravention of the OMA is discretionary with the court. *Crowley v. Governor of Michigan,* 167

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Mich.App 539, 546; 423 NW2d 258 (1988). Plaintiff must allege not only that the public body failed to comply with the act, but also that this failure impaired the rights of the public. MCL 15.270(2); MSA 4.1800(20)(2). Here, the public merely had the opportunity to observe the council's formal vote. Access to the closed session minutes after defendants made their decisions is not equivalent to participation. Indeed, this Court has previously found that the denial of a public hearing "in itself" impairs the rights of the public because the public cannot present their views. *Menominee, supra* at 820. Moreover, plaintiff presented factual allegations to support his conclusion that the public's rights were impaired because the purchase prices were too low. Therefore, the lower court erred in finding that defendants were entitled to judgment as a matter of law.

Finally, plaintiff brought an OMA claim against Fisher, the village clerk, because of the disclosure of the minutes of the closed sessions, an alleged violation of M.C.L. § 15.267(2); MSA 4.1800(17)(2). However, because this section only applies to the disclosure of the minutes of closed sessions and we hold that the council's decisions should have been made during open sessions, the statute is inapplicable.

***4** In summary, plaintiff's OMA claims are not moot and, with the exception of plaintiff's claim against Fisher, it is necessary to reverse the lower court's grant of summary disposition for defendants. On remand, the lower court should consider invalidating defendants' decisions where defendants failed to comply with M.C.L. § 15.263(2); MSA 4.1800(13)(2) and where the failure impaired the rights of the public by denying them a public hearing at which to express their views. Moreover, assuming plaintiff is also successful in his action for injunctive relief, then he is entitled to recover attorney fees and costs. MCL 15.271(4); MSA 4.1800(21)(4).

II

Plaintiff argues that the trial court also erred in granting defendants summary disposition on his FOIA claim. We disagree. At the time the events in this case occurred, the FOIA required a public body that receives a request for a public record, to respond "not more than 5 business days after the day the request is received." MCL 15.235(2); MSA 4.1801(5)(2). Here, plaintiff gave defendants a letter dated Monday, February 12, 1996, requesting that defendants provide him with all notes, tapes, records, minutes and other items pertaining to the discussion of land sales at the council's first meeting. Defendants responded to plaintiff's request by enclosing with their letter dated Monday, February 19, 1996, the previously sealed minutes of the closed session during their first meeting. Despite plaintiff's argument about the date on which he received defendants' response, the response complied with the statute as it was written at that time. Plaintiff also argues that defendants did not respond to the remainder of his FOIA request, but he does not specify to which documents or records he refers. We are unable to determine what, if any, documents were unavailable to plaintiff because defendants published the minutes of the open sessions from both meetings and unsealed the minutes of the closed sessions. Once the requested records are produced, the substance of a FOIA controversy disappears and becomes moot because the disclosure that the suit seeks has already been made. *Densmore v. Dep't of Corrections,* 203 Mich.App 363, 366; 512 NW2d 72 (1994). Consequently, the lower court properly dismissed this claim either because it was moot or without merit. Accordingly, plaintiff is not entitled to costs and attorney fees under M.C.L. § 15.240(4); MSA 4.1801(10)(4).

Reversed in part and remanded for further proceedings consistent with this opinion. We do not retain jurisdiction.

All Citations

Not Reported in N.W.2d, 1997 WL 33330968

End of Document

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STATE OF MICHIGAN

IN THE CIRCUIT COURT FOR THE COUNTY OF WASHTENAW

RD MICHIGAN PROPERTY OWNER I LLC, a Delaware limited liability company, FELDKAMP SIBLINGS, LLC, a Michigan limited liability company, DENNIS FINKBEINER, an individual, LYNN ELLEN FINKBEINER, an individual, WILKIN FARM PROPERTIES I, LLC, a Michigan limited liability company, DENNIS C. WILKIN, an individual, and ALICE M. WILKIN, an individual,

Plaintiffs,

v.

SALINE TOWNSHIP, a Michigan municipal corporation,

Defendant.

KATHRYN ELIZABETH HAUSHALTER,

Proposed Intervenor and Cross-Claimant,

v.

SALINE TOWNSHIP, a Michigan municipal corporation,

Cross-Defendant.

Civil Action No. 25-001577-CZ
Judge: Honorable Julia B. Owdziej
Date Filed: 9-12-25

DECLARATION OF ROBERT T. DUBE, JR. IN SUPPORT OF PROPOSED INTERVENING CO-DEFENDANT AND CROSS-CLAIMANT'S MOTION FOR RECONSIDERATION

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FILED IN Washtenaw County Trial Court; 3/27/2026 1:46 PM

Attorneys for Plaintiffs	37000 Grand River Ave. Farmington Hills, MI 48325 (248) 476-6900 dlandry@lmdlaw.com *Attorneys for Defendant* Ellis Boal (Pl0913) 9330 Woods Rd. Charlevoix, MI 49720-1698 (231) 547-2626 ellisboal@voyager.net ECKLAND & BLANDO LLP Robert T. Dube Jr.* 100 Washington Ave. South Suite 1500 Minneapolis, MN 55401 (612) 236-0160 rdube@ecklandblando.com *Temporarily Admitted *Attorneys for Proposed Intervening Co-Defendant and Cross-Claimant*

Robert T. Dube, Jr. Esq., pursuant to Michigan Compiled Laws 600.2184, does state and declare as follows:

1. I am an attorney representing proposed intervening co-defendant and cross claimant Kathryn Haushalter in the above-captioned matter. I am temporarily admitted to practice law in the State of Michigan.

2. I submit this declaration in support of Haushalter's Motion for Reconsideration of the Court's February 20, 2026, and March 7, 2026, Order denying her Motion to Intervene as a Co-Defendant and Cross-Claimant in this matter.

3. The statement made in this declaration is made upon personal knowledge unless noted otherwise.

4. The document attached hereto as Exhibit 1 is a true and correct copy of an invoice received via a Freedom of Information Request.

5. The document reflects that Township counsel met "to review the edits made to the consent judgment by the Township Board" on October 2, 2025.

FURTHER YOUR DECLARANT SAYETH NAUGHT

I declare under penalty of perjury that everything I have stated in this document is true and correct. Executed this 27th day of March 2026, in the County of Hennepin and the State of Minnesota.

/s/ ROBERT T. DUBE, JR.
Robert T. Dube, Jr.

LANDRY, MAZZEO, DEMBINSKI & STEVENS, P.C.

37000 GRAND RIVER AVENUE
SUITE 200
FARMINGTON HILLS, MI 48335-2882
(248) 476-6900
Tax ID#: 26-2709897

To: Saline Township
Attention: Kelly Marion , Township Clerk
4254 Arkona Rd
Saline, MI 48176

Biller: DAVID B LANDRY
Invoice Date: October 14, 2025
Invoice No: 31594
***** FINAL BILL *****

Client/Matter: DID.28202
Description: RD Michigan Property LLC v Saline Township
Email: Salinetownship@gmail.com

For professional services rendered through October 14, 2025

Date	Service Description	Hours
Fees:		
09-22-2025 DBL	FACT INVESTIGATION/DEVELOPMENT REVIEW/ANALYZE E-MAIL FROM PLAINTIFF ATTY WITH PROJECTED BENEFITS TO TOWNSHIP OF CONSENT JUDGMENT	.50
09-24-2025 DBL	FACT INVESTIGATION/DEVELOPMENT REVIEW/ANALYZE PREPARATION FOR PUBLIC MEETING WITH TOWNSHIP BOARD, PLANNING COMMISSION AND PUBLIC, REVIEW TOWNSHIP ZONING ORDINANCE, TOWNSHIP MASTER PLAN, ALL REPORTS SUBMITTED BY PLAINTIFF, TRAFFIC ANALYSIS, LIGHTING, DTE LETTER	2.20
09-24-2025 DBL	APPEAR FOR/ATTEND TRAVEL SALINE TOWNSHIP PUBLIC MEETING WITH TOWNSHIP BOARD, PLANNING COMMISSION AND PUBLIC TO DISCUSS PROS AND CONS OF LAWSUIT AND POTENTIALS FOR RESOLUTION (96 MILES ROUND TRIP)	2.00
09-24-2025 DBL	ANALYSIS/STRATEGY APPEAR FOR/ATTEND PUBLIC MEETING WITH TOWNSHIP BOARD, PLANNING COMMISSION AND PUBLIC TO DISCUSS LAWSUIT AND POTENTIALS FOR TRIAL OR SETTLEMENT BY WAY OF A CONSENT JUDGMENT	3.00

EXHIBIT 1

Date	Service Description	Hours
09-26-2025 DBL	SETTLEMENT/NON-BINDING ADR COMMUNICATE (OTHER OUTSIDE COUNSEL) EXTENDED TELEPHONE CONFERENCE WITH PLAINTIFF ATTY RE [redacted]	1.00
09-26-2025 DBL	SETTLEMENT/NON-BINDING ADR COMMUNICATE (OTHER OUTSIDE COUNSEL) WITH TWP ATTY FRED LUCAS RE [redacted]	.30
09-26-2025 DBL	ANALYSIS/STRATEGY COMMUNICATE (WITH CLIENT) LETTER TO TOWNSHIP CLERK REQUESTING A CLOSED SESSION MEETING WITH THE TWP BOARD TO DISCUSS A CONSENT JUDGMENT	.30
09-27-2025 DBL	ANALYSIS/STRATEGY COMMUNICATE (WITH CLIENT) FROM SALINE TWP TREASURER JENNIFER ZINK RE [redacted]	.20
09-27-2025 DBL	PLEADINGS COMMUNICATE (OTHER OUTSIDE COUNSEL) WITH PLAINTIFF ATTY RE [redacted]	.20
09-27-2025 DBL	SETTLEMENT/NON-BINDING ADR COMMUNICATE (OTHER OUTSIDE COUNSEL) WITH PLAINTIFF ATTY RE [redacted]	.20
09-29-2025 DBL	SETTLEMENT/NON-BINDING ADR REVIEW/ ANALYZE PROPOSED CONSENT JUDGMENT	3.40
09-29-2025 DBL	SETTLEMENT/NON-BINDING ADR RESEARCH REVIEW MICHIGAN LAW RE INDUSTRIAL FACILITIES TAX EXEMPTION CERTIFICATE	.40
09-29-2025 DBL	ANALYSIS/STRATEGY REVIEW/ANALYZE MEETING MINUTES OF JOINT TWP BOARD AND PLANNING COMMISSION OF AUG 20, 2025 AND TWP BOARD MINUTES OF AUG 13, 2025	.30
09-29-2025 DBL	SETTLEMENT/NON-BINDING ADR COMMUNICATE (OTHER OUTSIDE COUNSEL) WITH PLAINTIFF ATTY RE [redacted]	.60

EXHIBIT 1

Date	Service Description	Hours
	[redacted]	
09-29-2025 DBL	FACT INVESTIGATION/DEVELOPMENT REVIEW/ANALYZE SEPT 26, 2025 LETTER FROM WASHTENAW COUNTY WATER RESOURCES COMMISSIONER RE THEIR REVIEW OF THE SITE PLAN AND THEIR COMMENTS	.30
09-29-2025 DBL	ANALYSIS/STRATEGY COMMUNICATE (OTHER EXTERNAL) WITH TWP ENGINEERING CONSULTANT DAN CABAGE RE [redacted]	.30
09-29-2025 DBL	FACT INVESTIGATION/DEVELOPMENT REVIEW/ANALYZE PLAINTIFF'S PROPOSED SITE PLAN DOCUMENTS	.80
09-29-2025 DBL	FACT INVESTIGATION/DEVELOPMENT COMMUNICATE (OTHER EXTERNAL) CONFERENCE CALL WITH PLAINTIFF ATTY AND TAX CONSULTANT RE [redacted]	.30
09-30-2025 DBL	PLEADINGS DRAFT/REVISE DRAFTING REDLINE CHANGES TO PROPOSED CONSENT JUDGMENT	1.00
09-30-2025 DBL	FACT INVESTIGATION/DEVELOPMENT REVIEW/ANALYZE PROPOSED CONOMINIUM DOCUMENTS	1.00
10-01-2025 DBL	FACT INVESTIGATION/DEVELOPMENT REVIEW/ANALYZE RECEIPT AND REVIEW UPDATED CONDOMINIUM DOCUMENTS	.30
10-01-2025 DBL	ANALYSIS/STRATEGY REVIEW/ANALYZE TWP ATTY FRED LUCAS' REDLINED EDITS TO PROPOSED CONSENT JUDGMENT	.30
10-01-2025 DBL	SETTLEMENT/NON-BINDING ADR REVIEW/ ANALYZE PLAINTIFF TENANT'S PROPOSED REDLINED CHANGES TO CONSENT JUDGMENT AND COMPARISON TO TWP'S REDLINED EDITS TO CONSENT JUDGMENT	1.00
10-01-2025 DBL	ANALYSIS/STRATEGY COMMUNICATE (OTHER OUTSIDE COUNSEL) WITH TWP ATTY FRED LUCAS RE [redacted]	.20
10-01-2025 DBL	SETTLEMENT/NON-BINDING ADR DRAFT/ REVISE REDLINED EDITS TO CONSENT	1.20

EXHIBIT 1

Date	Service Description	Hours
	JUDGMENT PROPOSED AND EDITED BY THE PLAINTIFF'S TENANT	
10-01-2025 DBL	SETTLEMENT/NON-BINDING ADR COMMUNICATE (OTHER OUTSIDE COUNSEL) REVIEW PLAINTIFF ATTY'S MOST RECENT CONSENT JUDGMENT REVIEW EDITS AND EXTENDED TELEPHONE CONFERENCE WITH PLAINTIFF ATTY [redacted]	.80
10-01-2025 DBL	SETTLEMENT/NON-BINDING ADR DRAFT/ REVISE FINAL EDITS TO CONSENT JUDGMENT FOR PRESENTATION TO TOWNSHIP BOARD AFTER CONFERENCE WITH PLAINTIFF ATTY	.70
10-01-2025 DBL	ANALYSIS/STRATEGY APPEAR FOR/ATTEND MICROSOFT TEAMS CONFERENCE WITH TWP ENGINEERING CONSULTANT DAN CABAGE AND TWP PLANNING CONSULTANT MIKE AUERBACK AND TWP ATTY FRED LUCAS RE [redacted]	1.00
10-01-2025 DBL	ANALYSIS/STRATEGY PLAN AND PREPARE FOR JOINT MEETING OF TWP BOARD AND TWP PLANNING COMMISSION	.80
10-01-2025 DBL	APPEAR FOR/ATTEND TRAVEL TO AND FROM SALINE TWP FOR CLOSED SESSION MEETING WITH TWP BOARD AND TWP PLANNING COMMISSION (96 MILLES ROUND TRIP)	2.00
10-01-2025 DBL	APPEAR FOR/ATTEND APPEAR FOR/ATTEND OPEN SESSION AND CLOSED SESSION OF JOINT TWO BOARD AND TWO PLANNING COMMISSION MEETING TO DISCUSS AND VOTE ON PROPOSED CONSENT JUDGMENT	3.00
10-02-2025 DBL	PLEADINGS DRAFT/REVISE EDITS AND ADDITIONS TO PROPOSED CONSENT JUDGMENT TO INCLUDE PROVISIONS APPROVED BY TWP BOARD AT 10.1.25 MEETING	.80
10-02-2025 DBL	PLEADINGS COMMUNICATE (OTHER OUTSIDE COUNSEL) CONFERENCE WITH PLAINTIFF ATTY TO REVIEW THE EDITS MADE TO THE CONSENT JUDGMENT BY THE TOWNSHIP BOARD	.80

EXHIBIT 1

Date	Service Description	Hours
10-03-2025 DBL	PLEADINGS DRAFT/REVISE FINAL EDITS TO CONSENT JUDGMENT TO INCORPORATE ITEMS APPROVED BY TOWNSHIP BOARD	1.30
10-03-2025 DBL	PLEADINGS COMMUNICATE (OTHER OUTSIDE COUNSEL) WITH TWP ATTY FRED LUCAS RE [redacted]	.20
10-03-2025 DBL	PLEADINGS COMMUNICATE (OTHER OUTSIDE COUNSEL) WITH PLAINTIFF ATTY RE [redacted]	.80
10-03-2025 DBL	PLEADINGS DRAFT/REVISE APPEARANCE FOR FILING IN COURT	.30
10-03-2025 DBL	PLEADINGS REVIEW/ANALYZE FINAL VERSION OF CONSENT JUDGMENT FOR EXECUTION BY THE PARTIES. FOUND A TYPO AND CORRECTED IT AND SENT TO PLAINTIFF ATTY FOR FINAL APPROVAL	.30
10-03-2025 DBL	PLEADINGS DRAFT/REVISE PREPARATION OF EXECUTION COPY OF CONSENT JUDGMENT FOR SIGNATURES BY ALL PARTIES	.50
10-06-2025 DBL	PLEADINGS COMMUNICATE (OTHER OUTSIDE COUNSEL) WITH TWP ATTY FRED LUCAS RE [redacted]	.20
10-06-2025 DBL	PLEADINGS COMMUNICATE (OTHER OUTSIDE COUNSEL) WITH PLAINTIFF ATTY RE [redacted]	.20
10-06-2025 DBL	PLEADINGS COMMUNICATE (OTHER OUTSIDE COUNSEL) TWP ATTY FRED LUCAS RE [redacted]	.20
10-06-2025 DBL	PLEADINGS COMMUNICATE (OTHER OUTSIDE COUNSEL) WITH PLAINTIFF ATTY RE [redacted]	.20
10-06-2025 DBL	PLEADINGS COMMUNICATE (WITH CLIENT) TELEPHONE CALL AND FOLLOW UP E-MAIL TO KELLY MARION [redacted]	.20

EXHIBIT 1

Date	Service Description	Hours	
	[redacted]		
10-06-2025 DBL	PLEADINGS COMMUNICATE (OTHER EXTERNAL)COMMUNICATION WITH MIKE AURBACH OF CARLISLE WORTMAN RE [redacted]	.20	
	Total Fees	**35.80**	**$ 10,740.00**
	Amount Due This Matter		**$ 10,740.00**

Allocation of Fees:	**Rate**	**Hours**	**Fee**
DBL...LANDRY DAVID B	$ 300.00	35.80	$ 10,740.00
		35.80	$ 10,740.00

PLEASE MAKE CHECK PAYABLE TO: LANDRY, MAZZEO, DEMBINSKI & STEVENS, P.C.

EXHIBIT 1